

Tamil Nadu Electricity Regulatory Commission Tamil Nadu Electricity Distribution Code

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State of Tamilnadu- Act

Tamil Nadu Electricity Regulatory Commission Tamil Nadu Electricity Distribution Code

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Tamil Nadu Electricity Regulatory Commission Tamil Nadu Electricity Distribution Code

Rule TAMIL-NADU-ELECTRICITY-REGULATORY-COMMISSION-TAMIL-NADU-ELECTRICITY-DISTRIBUTION-CODE of 2004

Published on 21 July 2004

Commenced on 21 July 2004

[This is the version of this document from 21 July 2004.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Electricity Regulatory Commission Tamil Nadu Electricity Distribution Code

Published vide Notification No. TNERC/DC/8/1 dated 21.7.2004

Whereas under section 86 of the Electricity Act, 2003 (Central Act 36 of 2003), the State Electricity Regulatory Commission shall, among others, specify or enforce standards with respect to quality, continuity and reliability of service by licensees;

And Whereas section 46 of the said Act, the State Electricity Regulatory Commission may, by regulations, authorize a distribution licensee to charge from a person requiring a supply of electricity any expenses reasonably incurred in providing any electric line or electrical plant used for the purpose of giving that supply;

Now, Therefore under the powers conferred by the said sections and all other powers enabling in that behalf and after previous publication, the Tamil Nadu Electricity Regulatory Commission hereby specifies the following Code.

Chapter 1

Preliminary

1.

Short title and commencement.

(1)

This Code may be called "Tamil Nadu Electricity Distribution Code"

2.

The provisions of this Code shall come into effect on the [date of its publication in the Tamil Nadu Government Gazette]
[Tamil Nadu Electricity Distribution Code has come into force from 1st September 2004.]

2. Definitions.

(1)

In this Code, unless the context otherwise requires:

(a)

"Act" means The Electricity Act, 2003 (Central Act 36 of 2003);

(b)

"Agreement" means with its grammatical variations and cognate expressions an agreement entered into by the Licensee and the consumer;

(c)

"Apparatus" means electrical apparatus and includes all machines, fittings, accessories and appliances in which conductors are used; Tamil Nadu Electricity Distribution Code

(d)

"Area of supply" means the area within which a Licensee is for the time being authorized by his/her licence to supply electrical energy;

(e)

"Code" means the Tamil Nadu Electricity Distribution Code;

(f)

"Commission" means the Tamil Nadu Electricity Regulatory Commission;

(g)

"Conductor" means any wire, cable, bar, tube, rail or plate used for conducting energy and so arranged as to be electrically connected to a system;

(h)

"Connected Load" means the aggregate of the manufacturer's rating of all equipments connected to the consumer's installation and of all portable equipments and also the capacity of the power source required to test manufactured products and repaired equipment in the installation;

Explanation. - Where the rating is in terms of KVA, it shall be converted to KW by multiplying it by a power factor of 0.9 and where the rating is in terms of HP, it shall be converted to KW by multiplying it by a factor of 0.746.

(i)

"Connection Point" means the point at which the Consumer's plant or apparatus is connected to the Licensee's supply system.

(j)

"Contracted Load" means the load specified in the agreement between the consumer and the Licensee engaged in the business of supplying electricity to him.

(k)

"Consumer's installation" means any composite electrical unit including the electric wires, fittings, motors and equipments erected and wired by or on behalf of the consumer in one and the same premises.

(l)

"Consumer's premises" means the area served by a service connection;

(m)

"Control Person" means a person identified as having responsibility for cross boundary safety;

(n)

Demand

a. "Average Demand" for the month means the ratio of the total kilowatt-hours consumed in the month to the total hours in the month.

b. "Maximum Demand" in a month means the highest value of the average Kilovolt- amperes in case of HT services and KW in case of LT services, delivered at the point of supply of the consumer during any consecutive thirty / fifteen minutes in a month depending on the nature of load.

c. "Permitted Demand," means the demand permitted by the Licensee taking into account the constraints in the transmission and distribution network.

d. "Sanctioned Demand" or "Contracted Demand" means the demand sanctioned by the Licensee and specified in the agreement.

(o)

"Designated Authority of the Licensee" means an authority who has been notified as such by the Licensee in the manner prescribed by the Commission to exercise powers under specific provisions of this Code;

(p)

"Emergency" means a situation arising out of threat to security of State, public order or a natural calamity or such other situation arising in the public interest which is likely to disrupt supply of electricity:

(q)

["Engineer" means an engineer, by whatever name designated, employed by the distribution licensee and is in charge of the local area of supply and includes any other person duly authorized by him or his superiors, to exercise any power of an engineer under this Code.] [[Substituted as per Commission's Notification No.TNERC/DC/8-8 dated,8.2.2008 (w.e.f. 27.2.2008). Before substitution it stood as under:

'Engineer' means an engineer, by whatever name designated, employed by the Licensee possessing such qualifications as are approved by the Commission and is in charge of the local area of supply and includes any other person duly authorized by him or his superiors, to exercise any power of an engineer under this Code']]

(r)

"Extra High Tension (EHT) consumer" means a consumer who obtains supply from the Licensee at Extra High Voltage.

(s)

"High Tension (HT) consumer" means a consumer who obtains supply from the Licensee at High Voltage.

(t)

"Low Tension (LT) consumer" means a consumer who obtains supply from the Licensee at Low or Medium Voltage:

(u)

"Load" means connected load or contracted load, as the case may be;

(v)

"Load Factor" means the ratio of the Average Demand for the month in terms of Kilowatts to the Maximum Demand for the month in terms of Kilowatts. The 'Load Factor' shall be calculated to three decimal places and rounded off to two decimal places,

(w)

"Month" unless the context otherwise requires, shall mean a month reckoned according to the British Calendar. With reference to billing and payment, it shall mean the period between the date of meter reading in a particular month and the corresponding date of meter reading of the immediately succeeding or preceding month, as the context requires.

(x)

"Occupier" means the person in occupation (whether as owner or otherwise) of the premises where electricity is used or intended to be used.

(y)

"Operational boundary" means the boundary between the equipment and apparatus operated by the Licensee and those operated by the Consumer.

(z)

"Power Factor" means the ratio of the real power to the apparent power and average power factor means the ratio of the Kilowatt-hours to the Kilovolt-ampere-hours consumed during the billing month.

(aa)

"SSLDC" means State's Sub Load Dispatch Center for local control at various places in Tamil Nadu.

(bb)

"SLDC" means State Load Dispatch Center at Chennai

(cc)

"Voltage"

? "Low Voltage" where the voltage does not exceed 250 volts under normal conditions.

? "Medium Voltage" where the voltage is higher than 250 volts and does not exceed 650 volts under normal conditions

? "High Voltage" where the voltage is more than 650 volts and does not exceed 33,000 volts under normal conditions

? "Extra High Voltage" where the voltage exceeds 33,000 volts under normal conditions

(dd)

"Year" means a year commencing on the first day of April. Words and expressions used in this Code but not defined either in this Code or the Act or the General Clauses Act 1897(Central Act 10 of 1897) shall have the same meanings as understood in engineering and commercial circles.

Chapter 2

Entities Pertaining to Distribution

3.

Entities involved in distribution and their respective roles.

- The following are the entities involved in the distribution of electricity and their respective roles,

(1)

State Load Dispatch Center (SLDC): It is the apex body to ensure integrated operation of the power system in the State. Its functions as assigned to it under the Act are.

(a)

be responsible for optimum scheduling and despatch of electricity within the State, in accordance with the contracts entered into with the Licensees or the Generating Companies operating in the state;

(b)

monitor grid operations;

(c)

keep accounts of the quantity of electricity transmitted through the State Grid.

(d)

exercise supervision and control over the intra-State transmission system and

(e)

be responsible for carrying out real time operations for grid control and despatch of electricity within the State through secure and economic operation of the State Grid in accordance with the grid standards and Tamil Nadu Electricity Grid Code (TNEGC)

It is vested with the power to levy and collect such fees and charges from the Generating Companies and Licensees engaged in intra-state transmission of electricity, which may be specified by the Commission.

In addition to the above, it shall also keep accounts of the consumers / licensees / persons engaged in generation and traders involved in open access transactions.

(2)

State Sub Load Dispatch Center (SSLDC): It is a body sub ordinate to SLDC to perform, under the supervision, control and direction of the State Load Dispatch Center, its functions in any specified area in the State. It shall also collect necessary data relevant to the SLDC, make operational analysis and report to SLDC.

(3)

State Transmission Utility (STU): Its functions are to -

(a)

undertake transmission of energy through intra-State transmission system (ISTS);

(b)

discharge all functions of planning and coordination of ISTS taking into account the national power plans and guide lines issued by Central Electricity Authority (CEA), in coordination with all the concerned organizations;

(c)

ensure development of an efficient coordinated economical system of intra state transmission lines for smooth flow of

electricity from Generating sources to Load Centers;

(d)

provide non-discriminatory open access to its Transmission systems for use by (i) any Licensee or generating company on payment of the transmission charges; or (ii) any consumer as and when such open access is introduced by the Commission under sub-section 2 of section 42 of the Act on payment of the transmission charges and a surcharge thereon as may be specified by the Commission.

(e)

implement the Code with respect to the Distribution Licensees and oversee for prudent practices and grid discipline;

(f)

facilitate review and recommend amendments to the Code to Commission without prejudice to the provisions in clause 51 of this code;

(g)

recommend for issue of distribution licenses;

(h)

supervise, direct and control the works of construction, operation and maintenance of any ISTS and;

(i)

take measures for resolution of issues arising due to non-compliance of operational / commercial provisions of the Code by the respective entities.

(4)

Distribution Licensees: The duties of the Distribution Licensee are:

(i)

to develop and maintain an efficient coordinated and economical distribution system in his/her area of supply and to supply electricity in accordance with the provisions contained in the Act.

(ii)

to implement the code with respect to the requirements from the consumers and oversee for prudent practices and code discipline.

(iii)

to facilitate review and recommend to the Commission amendments to the code without prejudice to the provisions in clause 51 of this code.

(iv)

to ensure that the consumer installations comply with the requirements of the code at the time of effecting service connection.

(v)

to take measures for resolution of issues arising due to non-compliance of operational / commercial / technical regulations of the code by the various sections of consumers in their jurisdiction.

(vi)

to allow the Distribution lines to be used as common carrier as and when the Commission introduce non-discriminatory open access to any of the consumer in his/her area to get supply from other Licensees / Generating Companies outside his/her area.

(5)

Tamil Nadu Electricity Regulatory Commission (TNERC): The functions of Commission as set out in the Act and rules made there under and in particular, to, -

(i)

determine the tariff for generation, supply, transmission and wheeling of electricity, wholesale, bulk, and retail as the case may be within the State;

(ii)

introduce non-discriminatory open access as per the provisions contained in the Act and in phases. Where open access has been provided to a category of consumer, the Commission shall determine the wheeling charges and surcharge thereon;

(iii)

[regulate electricity purchase and procurement process of distribution licensees including the price at which the

electricity shall be procured from the generating companies or licensees or from other sources through agreements for purchase of power for distribution and supply within the State;] [[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008. Before substitution it read under:

(iii)

regulate electricity purchase and procurement process of distribution licensees including the price at which the electricity shall be procured from the generating companies or licensees or from other sources through agreements for purchase;]]

(iv)

facilitate intra state transmission and wheeling of electricity;

(v)

specify and enforce standards with respect to quality, continuity and reliability of service by Licensees.

Chapter 3

Distribution System Planning

4.

Distribution System Planning.

(1)

The main Objectives for the distribution system planning are to, -

(a)

plan, design and develop the distribution system so that it may be operated in an economical, safe and reliable manner conforming to the relevant Act and rules there under

(b)

specify technical conditions, which enable the licensee and consumers to meet set standards for efficient operation of the electrical interface between them

(c)

[define the procedure for the exchange of data on system planning between the Licensee and consumers of the distribution system.] [[Substituted as per Commission's Notification NoTNERC/DC/8-8 dt 8.2.2008 (w.e.f 27.2.2008)

Before substitution it read as under:

'c. define the procedure for the exchange of system planning data between the Licensee and consumers of the distribution system.']]

(d)

provide sufficient information for a consumer to access opportunities for connection.

(e)

establish methods through which the Licensee shall coordinate with the STU, which includes furnishing of data required by the Commission/ or the Authority.

(2)

These guidelines of planning cover the individual sub-stations, system planning, analysis and the techno-economical aspects in the field of Distribution systems. It applies to all the consumers already connected or awaiting or seeking connection to the distribution system, Distribution Licensees and State Transmission Utility (STU), wherever it is applicable.

5.

Distribution Planning Framework.

(1)

The main areas, which require a careful network planning, and analysis:

(a)

Networking extension planning - newly built networks or extension of already existing network or configuration of the existing network to meet the changed load or feeder situation or operational existence.

(b)

Network component design

(c)

Providing solutions for operational problems like low voltage, inadequate short circuit withstand capability, power swings and protection selectivity errors.

(2)

Networks are generally extended over several stages. The operational conditions are then simulated for this future load forecast. This step will facilitate the fulfilling of all the operational conditions after Commissioning of the new extension stage. A careful network analysis provides the decision aids for selecting the most reliable and cost effective solution from among several configurations. To dimension the individual components like transformer, cables and switchgear and to provide an optimal solution for the total system, an extensive analysis of the network is often necessary.

The system-planning wing:

(a)

examines the operational behavior of electrical systems both in normal operation and under fault condition

(b)

proposes remedial measures, if the operational conditions do not conform to the requirements for quality supply.

(c)

promotes the development of components by examining operational conditions and equipment requirements,

(d)

advises in system configuration, system structuring and component design questions and,

(e)

plans the extension of already existing systems as well as the new construction of supply systems within the framework of the total system.

(3)

Intensive sessions are required to be held to clarify the task situation and it may be processed in direct contact with the [direct customer as defined in clause (e) of regulation 2 of the Tamil Nadu Electricity Regulatory Commission - Intra State Open Access Regulations 2005]

[Substituted for the expression 'High Voltage level' as per Commission's Notification No. TNERC/DC/8-8dated 8.2.2008 (w.e.f 27.2.2008).]

.

Distribution network are cost intensive and hence they require long term planning. The location and nature of the connected loads on the quality and reliability of the power requirement determine the structure of the distribution network.

(4)

The system planning is also necessary in the cases that include

(a)

Network modernization and upgrading.

(b)

Changes in operational and protection philosophy or neutral grounding.

The tasks, problems and activities related to Network Expansion planning, component design and operational problems are brought out as follows.

Sl.No.

Description

Tasks & problems

Activities

1

Expansion planning

Local increase New transformer, substations

Integration of peripheral -Networks Cable relaying Modernization

of substations Network coupling Power station extension *[upgrading the voltage level] Network ocumentation Graphic Information

System

Network calculation forload flowand

short-circuit. Dynamic network Calculation.

2

Component design

Circuit-breaker stress cable cross section
Transformer size Neutral earthing resistor
Stability Fault analysis Relay coordination
studies

3

Operational problems

Substation faults Voltage quality Harmonics

Earthing problems Motor starting Power swings Frequency of
occurrence of faults Fault tripping

Harmonics analysis Harmonics filter design

Earthing measurement Network configuration Substation design

Economic analysis Relay selection **[provision of effective
earthing' Insulation coordination

* Substituted for the clause "Define the task" as per Commission's Notification No. TNERC/DC/S-8

** Substituted for the expression "Handling of Neutral point" as per Commission's Notification No. TNERC/DC/8-8 dated
8.2.2008 (w.e.f. 27.2.2008)

(5)

Stages involved in network expansion planning

(a)

Defining the task

(b)

[Commencing]

[Substituted for the expression 'Commence' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f.
27.2.2008).]

the planning task which consists of:

(i)

Recording of the status of the existing distribution network and analysis of its operational situation

(ii)

Load forecast and analysis - Compilation of data on the characteristic features of the loads that will be incident in the
near future and that of the existing loads;

(iii)

Estimation of load development

(iv)

Examination of the alternative options

(v)

Checking the issues involved in the above options and also the feasibility of introducing a new transformer,
enhancement of existing transformer capacity etc.

(vi)

Establishment of site location and new substation design.

(vii)

Modification / Redesign of sub-transmission and distribution networks and its protective arrangement including
protective relay setting and coordination.

(viii)

Study on alternatives for least cost investment.

(ix)

Assessment of operational advantages and disadvantages and anticipated supply reliability levels of various options

(x)

Investment planning

(xi)

Procurement of the required network components.

6.

Planning process.

- The system planning considerations are:

(1)

Load Forecast: It commences with a forecast of the anticipated load requirements (both demand and energy). The Licensee shall forecast the demand for power within the area of supply, annually or more frequently, if required by the Commission, in each of the succeeding five years. The Licensee shall prepare a demand forecast and generally follow the procedures set out herein. The licensee shall create a database of loads for each consumer category and for each distribution substation and update it annually.

(2)

Load Research: The Licensee shall develop a load research program with the objective of obtaining customer load profile data that provides the usage characteristics of specific appliances, consumers and group of consumers. This load research will also facilitate,

(a)

Demand status according to end use at the hour of system peak, daily, monthly, seasonally or annually

(b)

Hourly end use demand for the day of the system peak, monthly, seasonally or annually.

(c)

Hourly end use demand for the average day of the system peak, monthly, seasonal or annually.

(d)

Category wise diverse or coincidence factors and load factors.

(e)

Total energy consumption for each category of consumer by month, season or year.

(f)

Category wise non-coincident peak demands.

(3)

Load Data: From the metering data collected at each connection point with the transmission system, the Licensee shall develop load curves for the area fed and also the system load curve for the area of supply in point by applying a suitable diversity factor. By reconciling the figure for actual energy sales with the drawal based on the metering data [compiled] [Substituted for the expression 'complied' as per Commission's Not if. No. TNERC/DC/8- dated 8.2.2008 (w.e.f. 27.2.2008)]

, approximate losses in the system may be arrived at for any period. This data shall be furnished to the STU and the Commission annually. All the consumers with a demand of 1 MW and above seeking connection shall furnish their load data to the Licensee, as detailed in Annexure I. The Licensee shall exercise special care in monitoring the actual development of loads in respect of consumers who desire to contract for loads of 1 MW and above at any single point. On demand by the consumer seeking connection, the Licensee shall furnish relevant system data as detailed in Annexure - II. The Licensee shall update the system data at least once in every six months.

(4)

Forecast Methodology: The Licensee shall formulate the long-term demand forecast taking into account the previous financial year ending March 31st as the Base Year and projecting the demand over the succeeding five years.

(a)

Energy Sales per tariff class shall be projected in the forecast period over the corresponding figures relating to the Base Year by adopting a suitable methodology, such as considering the trend for the previous five years.

(b)

The projections shall take into account assumed normal growth for non-specific loads, specific and identified loads of 1 MW and above and also the effects if any, of Demand side management and Loss reduction measures.

(c)

The Licensee shall compare the aggregate energy requirement at each of the connection points with the transmission system after accounting for system losses. The future peak load in each of the years in the forecast period may be derived using an Annual Load Factor.

(d)

The Licensee shall take into consideration any authenticated report on demand forecast or Power survey carried out by

agencies like Advisory Board on Energy, Planning Commission, Central Electricity Authority, STU, Commission, CERC and Government of Tamil Nadu. The Licensee shall forward the long term demand forecast for the area of supply on an annual basis to the STU and the Commission, along with the details as indicated below.

(i)

Data.

(ii)

Methodology

(iii)

Assumptions

The Licensee under the conditions of the licence shall co-operate with the STU in the preparation of demand forecasts for the State of Tamil Nadu. The format for the demand and energy forecasts shall be specified by the STU.

(5)

Planning Criteria and performance bases: The planning criteria for the distribution system as specified [by the Commission]

[Substituted for the expression 'by Commission' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

shall form the basis. The performance bases to be considered in the system planning are as follows:

(a)

The Distribution performances established herein shall be implemented in a manner so as to ensure that no entities are forced to achieve goals beyond the capability and limitations of the current system in the immediate future while continuing to strive for the higher standards by improving their system in the long term. As for the existing arrangements, the implementation can be in stages and shall be determined by the Commission.

(b)

The capacity of step down transformers used in the distribution system and the layout of bus bars, switchgear, transformers, capacitors, earthing system, surge arrestors, control panels, station battery, fire extinguishers and other accessories required for the protection and safe operation of the substations shall as far as possible be standardized by the Licensees and shall conform to the guidelines and principles contained in the Code. The Commission, in specific cases and to ensure uniform adoption, can however specify the standards to be adopted.

(c)

While planning the distribution system, the Licensee shall examine the cost effectiveness of loss reduction measures without compromising the security standards. The Licensee shall take measures to reduce the length of low tension bare conductor, overhead lines, wherever cost effective and these shall include but not limited to the following:

(i)

Achievement of HT: LT ratio to the level of 1 to 1.5

(ii)

Laying of underground cables

(iii)

Increasing the number of low loss distribution transformers.

(d)

Substation Design Criteria: HV substations, Sub transmission, primary and secondary distribution shall be designed taking into account the following factors:

(i)

Safety of Operating Personnel

(ii)

Adequate cross section of Busbar to meet the electrical and mechanical requirements.

(iii)

Mechanical and electrical interlocks to prevent inadvertent operation of equipments including switch.

[iii-a) Adequate Protection System with proper insulation co-ordination] [[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008).before substitution it was as under:

The distribution system shall be properly earthed in accordance with the Indian Standards in force, substation earth mats shall be designed to provide the required earth resistance and limit the ground potential rise limited by Touch and

Step potential criteria as per standards]]

(iv)

Adequate Flexibility in operation and maintenance.

(v)

Operation and Maintenance needs.

(vi)

Space for future expansion

(e)

Distribution Line Clearances: Overhead lines shall comply with the safety measures specified by the Authority under section 53 of the Act.

(f)

Earthing : The distribution system shall be effectively earthed in accordance with the [Indian Standards in force, substation earth mat shall be designed to have a low overall impedance / resistance and to have a minimum transient ground potential rise (TGPR) during fault, giving rise to only permissible safe touch and step potential]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

. All individual earth electrodes, earthing pits and interconnection arrangements shall be correctly installed and maintained. The bodies, cases, trucks and enclosures of all equipment shall be properly earthed in accordance with the system requirements and equipment ratings. Metallic line supports of overhead lines, cable sheaths and shields shall also be earthed in a proper manner. Connections may be compressed using crimping tool, welded, braced, or bolted using suitable lock washers/locknuts. Bolts should not be used for buried connections

Chapter 4

Connectivity Conditions

7.

Connectivity Conditions.

- The Connectivity Conditions specify the minimum technical and design criteria, which shall be complied by any agency connected to, or seeking connection to the Distribution System. The Licensee shall ensure compliance of the above criteria by any agency as a pre-requisite for the establishment of an agreed connection. The terms and conditions of supply under Chapter 6 of this code shall be read in conjunction with this chapter. The connectivity conditions shall fulfill the requirement stipulated in section 50 and 53 of the Act. The Connectivity Conditions are provided to ensure that:

(a)

The basic rules for connections are complied by all agencies. This will help to treat all agencies in a non-discriminatory manner.

(b)

Any new or modified connection, when established, shall not suffer unacceptable effects due to its connection to the Distribution System nor produce unacceptable effects on the system or any other connected agency.

(c)

The ownership and responsibility for all the equipments, shall be clearly specified in a schedule (site responsibility schedule) for every site, where a connection is made.

8.

Distribution System Interface with Small Generators.

- The electricity generated by the private developers pertaining to power projects based on [renewable]

[Substituted for the expression 'non-conventional' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f 27.2.2008).]

energy sources of wind, biomass etc or captive power plants shall be evacuated by interfacing with the distribution system or intra state grid. The voltage levels, connection points and connectivity conditions, safety etc., for such interfacing shall comply with the conditions laid down under Tamil Nadu Electricity Grid Code (TNEGC) and the regulations issued by the Authority in this regard.

9.

Distribution Systems protection arrangement.

(1)

Protection of the distribution system and the consumer's system shall be well coordinated. Individual protection schemes

shall have adequate selectivity, sensitivity and reliability and speed of operation to disconnect the faulty equipment/circuit from the healthy system. No item of electrical equipment shall be allowed to remain connected to the distribution system unless it is covered by appropriate protection scheme.

(2)

In the distribution system protection for lines / U.G cables, transformers and other equipments shall be followed by the Licensee, and by the consumers of the distribution system as well in accordance with the provisions made in TNEGC. The distribution system relay setting shall be coordinated with that of STU and it shall be endorsed by STU and SLDC.

(3)

Every consumer within the area of supply of the Licensee who are availing / desire to avail of supply at 66KV, 110 KV, 230 KV level shall furnish the details of their equipment protection schemes to the Licensee and get approved before the connection is effected. On demand, the Licensee shall provide similar protection data relating to their distribution systems to any consumer seeking the above connection.

(4)

The Licensee and the EHT consumers of the distribution system shall attend the protection co-ordination meetings as and when called upon to do so by the STU / SLDC to discuss all related issues and take remedial measures as discussed and agreed to in such meetings.

10.

Operational Labeling.

- The Licensee and the consumers shall be responsible for the provision and maintenance of clear, unambiguous signs and labels indicating the numbering and / or name of the equipment / apparatus and circuit at the substations and connection sites.

11.

Metering.

- [The minimum requirement of metering for substations in distribution system, Generating station and higher voltage consumer shall conform to the requirement stipulated in Tamil Nadu Electricity Grid Code (TNEGC)] [[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008). Before substitution it read as under: 'The minimum requirement of commercial and operational metering at distribution system substations and higher voltage consumer's sub stations shall conform to the requirement stipulated in Tamil Nadu Electricity Grid Code (TNEGC)']]

12.

Communication.

- Reliable communication links shall be established for the exchange of data, information and operating instructions between the Licensees, consumers with demand of 1 MW and above, the load control centers of the Distribution Licensee and the SLDC / SSLDC, as the case may be.

13.

The Licensee shall monitor the voltage, frequency and power factor in the distribution system at different points, during the peak and off peak hours and take all reasonable measures for the improvement of the same, if it falls below the prescribed level continuously.

(1)

Voltage: The variation in the voltage levels in the distribution system may depend upon the available VAR generation, system loads and configuration of the transmission system and distribution system. Under normal operating conditions the Licensee shall exercise proper voltage monitoring and control in the distribution system beyond the point of interconnection so as to maintain voltage at all levels in accordance with the Standards of Performance specified by the Commission. The means adopted shall include.

(a)

Use of transformers equipped with tap changers (on load /Off Load).

(b)

Balancing of loads between phases of the LT network.

(c)

Limiting KVA- km loading of the circuits

(d)

Reduction of overloaded transformers by planning and installing additional distribution transformers.

(e)

By installing the required regulating transformers (Boosters) and synchronous Condensers at appropriate locations.

(f)

Installation of shunt capacitors/Capacitor banks at optimum locations depending upon the requirement of VAR compensation in the network

(g)

[Provision of switched/fixed capacitor, as the case may be, on the (secondary) LV side of Distribution Transformers.]
[[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008) which before substitution stood as under:

'Provision of switched capacitor on the (secondary) LV side of Distribution Transformers']]

(2)

Frequency: The Licensee shall abide by the instructions issued by the SLDC on load frequency control for maintaining the supply frequency within the statutory limits either by resorting to load shedding or by rolling blackouts.

(3)

Power Factor: The Licensee shall maintain the system power factor at the level of minimum of 0.9 (Lag) at the interface/s and carry out system improvement measures at strategic points in the distribution system by undertaking useful system studies and installing the required VAR compensation equipment to meet the situation. The Licensee shall also counsel and [advise the consumers]

[Substituted for the expression 'advise consumers' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

on the ways and means to improve the power factor in their respective systems to the required level. It shall be obligatory on the part of the consumers to improve the power factor of their connected loads to the required level in accordance [with the provisions]

[Substituted for the expression 'with provisions' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

made in this code. Every consumer with a power factor less than the stipulated level may be suitably advised to rectify the situation by installing appropriate power factor correction equipment, without prejudice to the levy of compensation charges as per the orders of the Commission from time to time.

(4)

Special Conditions: Special conditions shall be incorporated in the connection agreement for loads with high harmonic content, low power factor and unacceptable supply voltage and frequency fluctuations, so that the consumer shall be forced to install appropriate correction equipments to meet the requirements of this Code.

14.

[Demand Side Management.

[Substituted for the expression '13' i.e. renumbered as per Commission's Notification No. TNERC/DC/8 dated 8.2.2008(w.e.f.27.2.2008).]

- The Licensee shall make suitable provisions in the Service Connection Agreements to make it mandatory on the part of selected categories of consumers with a contracted Demand over and above a specified KVA limit (to be specified [by the Commission]) to carry out an Energy Audit at their establishment for in-plant load management and for carrying out end use energy efficiency / conservation measures. On their part, the Licensee shall provide such consumers with relevant information relating to energy audits and its methodologies and the financial incentives offered by recognized financial institutions, banks and other government organizations.]

Chapter 5

Operation Guidelines for Distribution System

15.

The procedures and practices to be followed by the Licensees and consumers whose electric lines and electrical plants are connected to the Licensee's distribution system for safe and efficient operation of then-respective systems are - ,

(1)

Demand Estimation: The Licensee shall provide to the SLDC / SSLDC, its projection of demand on a year ahead, month ahead and day ahead basis. The time frames for such submission, as set out in the TNEGC shall be adhered to by the Licensee. The SLDC or SSLDC shall be the agency to receive the details from the licensees or issue directions to the

Licensees as the case may be in line with the requirements prescribed in this chapter on Operational Guidelines and as per the provisions of the relevant Code. On demand, the [consumers concerned]

[Substituted for the expression 'concerned consumer' as per Commission's Notification No.TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

shall furnish these data to the Licensees. The Licensee shall estimate its hourly and daily demand on the basis of relevant load curves drawn on a day ahead basis, subject to modification depending upon information received from any specific consumer or caused by any untoward incident/contingency.

(2)

Scheduled Shutdown Programs: The Licensee shall furnish the proposed (planned) outage (scheduled shutdown) programs to the STU/ SLDC as specified in TNEGC. Planned outage programs shall furnish clearly the details of the electric lines/cables and the equipments of the distribution system that will be taken out of service, and other details of the planned interruption namely the date, duration and quantum of load that may be limited/restricted at any interconnection during this planned interruption.

(3)

Contingency Planning: The contingencies in the distribution system are mainly due to:

(a)

Total or partial blackout of intra transmission or inter transmission network. (Loss of generating sources)

(b)

[Failure of network components like Breakers, Power Transformers, Current Transformers, Potential Transformers and lines in the transmission system. [[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008) which before substitution stood as under:

'b. Failure of network components like breakers, lines and UG cables in the transmission system, c. Breakdown of components in the distribution system']]

(c)

Breakdown of components like Distribution Transformers, lines, etc. in the distribution system].

The procedure to be followed during such contingencies for the restoration of supply is detailed in the sections to follow

(4)

Intra / Inter Transmission System outage: In regard to the restoration of supply during the total black out at any point of interconnection, the Licensee shall abide by the black start procedures framed by the STU / SLDC. Likewise, the Licensee shall follow the guidelines provided by the STU during the outage of the apparatus or lines/cables in the above networks. The licensees may also follow an approved Demand Side Management, Load shedding, rolling blackouts and other measures.

(5)

Distribution System Outage: The interruption of the power supply to any part of the distribution system lasting more than an hour, due to the breakdown of any part of the distribution system/its components, may be termed as distribution system failure and the Licensee shall evolve a suitable supply restoration procedure for such distribution system failures under intimation to the Commission.

(6)

Demand Management / Load Shedding: On getting directions from the SLDC rolling blackouts for short duration shall be carried out by the Licensees to maintain the load generation balance and security of the network. This may also be necessary due to the loss of any circuit, equipment or any other operational contingency that may occur in their Distribution Networks also. The Licensee shall estimate the loads that may be shed in discrete blocks at each interconnection point after consultation with the consumers if possible and submit the same to the SLDC. The consumers shall cooperate with the Licensee in this regard. The Licensee shall work out the modalities of the load shedding. A detailed procedure shall also be furnished to the SLDC and other officials in charge of the downstream substations of the Licensee, where such load shedding / rolling blackout are to be carried out. When provisions are available for the automatic load shedding with the aid of under frequency relays, the circuits involved and the quantum of load to be shed shall be intimated to the SLDC and [officials]

[Substituted for the expression 'officials persons ' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

in charge of downstream substations of the Licensee. The settings adopted for the UF relays shall also be furnished. If

any constraint or bottleneck in the transmission system and/or distribution system, warrants rotational load shedding then it shall be resorted to by the Licensees in their distribution system. On such occasions, the public shall be promptly informed of such arrangements through the media. [Consumers]

[Substituted for the expression 'Large consumers' as per Commission's Notification No. TNERC[DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

with [contracted demand]

[Substituted for the expression 'contract demands' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

of 1 MW and above and essential services such as hospital, public water works etc, shall be notified through telephone/ fax/ e-mail or any other communication systems.

16.

Safety Aspects.

(1)

Provisions with respect to safety and electricity supply is dealt in detail under section 53 of the Electricity Act, which reads as:

The Authority may in consultation with the State Government, specify suitable measures for:

(a)

Protecting the public (including the persons engaged in the generation, transmission or distribution or trading) from dangers arising from the generation, transmission or distribution or trading of electricity, or use of electricity supplied or installation, maintenance or use of any electric line or electrical plant;

(b)

Eliminating or reducing the risks of personal injury to any person, or damage to property of any person or interference with use of such property;

(c)

Prohibiting the supply or transmission of electricity except by means of a system which conforms to the specification as may be specified;

(d)

Giving notice in the specified form to the Appropriate Commission and the Electrical Inspector, of accidents and failures of supplies or transmissions of electricity;

(e)

Keeping by a generating company or licensee the maps, plans and sections relating to supply or transmission of electricity;

(f)

Inspection of maps, plans and sections by any person authorized by it or by Electrical Inspector or by any person on payment of specified fee;

(g)

Specifying action to be taken in relation to any electric line or electrical plant, or any electrical appliance under the control of a consumer for the purpose of eliminating or reducing a risk of personal injury or damage to property or interference with its use;"

(2)

The measures specified by the Authority, in accordance with the above provision shall form the basis for safety. Primary focus should be laid on safety in all the works related to the location, erection, installation, operation and maintenance of the equipments, devices and other network components at the consumer's mains/premises. Safety of the end users, operating personnel and public shall be given focused attention. Adequate training will be imparted to the operating personnel with the adoption of relevant operating techniques and safety procedures/ precautions necessary for satisfactory operation of the system and its equipments which include cross boundary connections and interface points as applicable.

(3)

Safety co-ordination: The salient aspects involved in safety co-ordination are:

(a)

The Licensee and the consumers of the distribution system shall observe safety rules, practices and precautions when

work is to be carried out on any apparatus or circuits in any part of the distribution system or in any part of the consumer system.

(b)

The objective of this safety co-ordination is to enforce the principles of safety as prescribed in the measures specified under section 53 of the Act and practices for their implementation.

(c)

[There shall be proper co-ordination between operating personnel of the Licensee and the consumers, between two distribution licensees across common control boundaries, for carrying out work on any apparatus, switchgear, or circuits belonging to each party at the point of interconnection or interface]

[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008, w.e.f. 27.2.2008.]

.

(d)

The Licensee shall follow the provisions of the TNEGC for cross boundary operations in co-ordination with the STU

(e)

The Licensee, all consumers and any other distribution Licensee having common electrical interface with the Licensee shall designate suitable persons to be responsible for safety co-ordination. These persons shall be referred to as control persons. The list of control persons, their designation and telephone numbers shall be exchanged between all [persons concerned]

[Substituted for the expression 'concerned persons' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

. Any change in the list shall be notified promptly to all concerned.

(f)

The disconnecting device / or devices shall be provided at each electrical interface, which shall be capable of effectively disconnecting the system of the Licensee and other consumers and grounding the respective system at the common boundary. These devices shall be identified and marked by the Licensee and respective consumer and shall be maintained in good condition at all times. Such disconnecting devices shall be provided with interlocks to prevent inadvertent switching operations by unauthorized persons.

(g)

Permission in writing shall be issued by the appropriate control person at the electrical interface to his/her counterpart responsible for carrying out work on any apparatus, switchgear or circuits beyond the electrical interface. Such permissions shall be termed as Line Clear Permits (LCP). The format of the LCP shall be standardized by the Licensee and shall be used by all concerned. Detailed rules framed by the Licensee pertaining to such works and Line Clear Permits (LCPs) shall be circulated to its personnel as part of its internal administration.

(h)

A list containing the names and other details of the Officers/staff who are authorized to issue / get LCPs on the apparatus, lines and cables may be [displayed]

[Substituted for the expression 'hung' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

at an apt location in the substation.

(i)

The Licensee shall formulate a checklist of operations to be carried out before the issue and return of LCPs and procedures for safety co-ordination for each electrical interface. Such procedures and checklist shall be issued to all concerned, by the Licensee, for implementation.

(j)

The Licensee shall prepare a safety manual incorporating all operating procedures in addition to safety rules and safety precautions applicable to its distribution system and the Consumer's system and circulate the same among [all staff concerned]

[Substituted for the expression all concerned staff as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

and Consumers for strict adherence.

(k)

The Licensee shall devise and maintain uniform operating procedure for switching, isolation, and restoration, live line working and test charge of defective lines/apparatus duly incorporating the safety aspects.

17.

Protective clauses as applicable to Railways, Highways, Airport, telegraphic signaling line etc., are as follows:

(1)

Protection of Railways, Highways, Airport, etc. as set out in section 159 of the Act reads as:

"No person shall, in the generation, transmission, distribution, supply or use of electricity, in any way injure any railway, highway, airports, tramway, canal or water-way or any dock, wharf or pier vested in or controlled by a local authority, or obstruct or interfere with the traffic on any railway, airway, tramway, canal or water-way."

(2)

Protection of telegraphic, telephonic and electric signaling lines as set out in section 160 of the Act reads as:

"(1) Every person generating, transmitting, distributing, supplying or using electricity (hereinafter in this section referred to as the "operator") shall take all reasonable precautions in constructing, laying down and placing his/her electric lines, electrical plant and other works and in working his/her system, so as not injuriously to affect, whether by induction or otherwise, the working of any wire or line used for the purpose of telegraphic, telephone or electric signaling communication, or the currents in such wire or line.

(2)

Where any difference or dispute arises between the operator, and the telegraph authority as to whether the operator has constructed, laid down or placed his/her electric lines, electrical plant or other works, or worked his/her system, in contravention of sub-section (1), or as to whether the working of any wire, line or current is or is not injuriously affected thereby, the matter shall be referred to the Central Government and the Central Government, unless it is of opinion that the wire or line has been placed in unreasonable proximity to the electric lines, electrical plant or works of the operator after the construction of such lines, plant or works, may direct the operator to make such alterations in, or additions to, his/her system as may be necessary in order to comply with the provisions of this section, and the operator shall make such alterations or additions accordingly:

Provided that nothing in this sub-section shall apply to the repair, renewal or amendment of any electric line or electrical plant so long as the course of the electric line or electrical plant and the amount and nature of the electricity transmitted thereby are not altered.

(3)

Where the operator makes default in complying with the requirements of this section, he shall make full compensation for any loss or damage incurred by reason thereof, and, where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration

Explanation. - For the purposes of this section, a telegraph line shall be deemed to be injuriously affected if telegraphic, telephonic or electric signaling communication by means of such line is, whether through induction or otherwise, prejudicially interfered with by an electric line, electrical plant or other work or by any use made thereof."

18.

Accident Reporting.

- Notice of accidents and inquiries as set out in section 161 of the Act reads as:

"(1) If any accident occurs in connection with the generation, transmission, distribution, supply or use of electricity in or in connection with, any part of the electric lines or electrical plant of any person and the accident results or is likely to have resulted in loss of human or animal life or in any injury to a human being or an animal, such person shall give notice of the occurrence and of any such loss or injury actually caused by the accident, in such form and within such time as may be prescribed, to the Electrical Inspector or such other person as aforesaid and to such other authorities as the Appropriate Government may by general or special order, direct.

(2)

The Appropriate Government may, if it thinks fit, require any Electrical Inspector, or any other person appointed by it in this behalf, to inquire and report -

(a)

As to the cause of any accident affecting the safety of the public, which may have been occasioned by or in connection with, the generation, transmission, distribution, supply or use of electricity, or

(b)

As to the manner in, and extent to, which the provisions of this Act or rules and regulations made hereunder or of any licence, so far as those provisions affect the safety of any person, have been complied with.

(3)

Every Electrical Inspector or other person holding an inquiry under sub-section (2) shall have all the powers of a civil court under the Code of Civil Procedure, 1908 (5 of 1908) for the purpose of enforcing the attendance of witnesses and compelling the production of documents and material objects, and every person required by an Electrical Inspector be legally bound to do so within the meaning of section 176 of the Indian Penal Code (45 of 1860).

19.

Major Incident Reporting.

(1)

The reporting on major incidents shall conform to the provisions under section 53 and 160 of the Act. Among the incidents that would affect the distribution system are:

(i)

Aberrations/deviations in system voltage and frequency level. (Both for HV and LV networks [exceeding the set tolerance levels]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008).]

.

(ii)

Major breakdowns in the distribution system.

(iii)

Major deviations of load drawal from any interconnection relative to the day ahead estimation of demand furnished by the Licensee to the STU / SLDC.

(iv)

Any other incident which the Licensee or consumer may consider worth reporting with regard to safe and reliable operation of the distribution system.

(v)

The Licensee and the consumers shall establish a hierarchy for reporting incidents and a procedure for the exchange of information. The consumers shall promptly furnish information to the Licensee regarding any major incident occurring in their system to the Licensee.

(vi)

The adverse impact of Harmonics in the system.

(vii)

The adverse impact of the operation of shunt capacitor banks on other equipments/devices in the network and at the consumer's premises as well.

Explanation. - The basic characteristics of the incident, which constitute a major break down, shall be determined by the concerned Licensee /Consumer and reported.

(2)

Prescribed time frame for the reporting by the Licensees in respect of major incidents.

(a)

Deviations in the system voltage or frequency

Exceeding the set tolerance level

- Monthly

(b)

Major deviation in load drawals

- Monthly

(c)

Major breakdowns of lines/cables/equipments

(Including any loss of capacity of 5 MVA and above)

? Preliminary report followed by a detailed

report Indicating status, nature of break down, total Hours break down period, restoration period, and estimate of losses/ repairs,

loss to persons /property, number of consumers affected etc.

- Within 24

(d)

Any other incident referred to in the Code

- Monthly

20.

Condition based monitoring/Preventive Maintenance programmes.

- shall be designed as follows:

(i)

[The Licensee shall prepare pre-monsoon inspection and other preventive maintenance schedules for lines and equipment and ensure its compliance at all levels. Necessary advance intimation shall be given to the consumers likely to be affected] [[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008).

Before substitution it was as under:

'The Licensee shall prepare pre monsoon inspection and other preventive maintenance schedules for lines and equipment and ensure its compliance at all levels. Necessary intimation shall be given to the affected consumers.21Inserted as per Commission's Notification No. TNERC/DC/8-9 dated 22.5.2008 (w.e.f. 11.6.2008).]].

(ii)

The level of maintenance shall be appropriate to meet the manufacturers maintenance recommendations and the performance standards of the Licensee, iii. All the bottom line, all the HV lines in the control area of the Licensee shall be inspected twice annually.

(iii)

Periodical testing and maintenance of transformers, switchgear and protective equipments and earthing in the distribution system shall be carried out by the Licensee in line with the manufacturers recommendations / standard practices for ensuring their smooth operation, serviceability, safety, reliability and efficiency.

(iv)

The Consumers also shall maintain their apparatus, switchgear, electric lines, metering equipment and cables including their generator sets in good operating condition and conforming to the measures specified under section 53 of the Act and keep them suitable for connecting to the distribution system in a safe and reliable manner. [Consumers shall ensure proper interlock facility provided for their generator sets to prevent parallel operation with.the Distribution System of the Licensee provided such generators are not interfaced with the Licensee's network for supply of power]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

(v)

Licensee shall set up a Consumer Trouble Call Management Center and lay down suitable procedures.

(vi)

The Licensee shall have provisions for sealing the meter, checking the quality of new meters, periodical calibration of customer meters, repair of defective meters and other related works.

21.

Tools, plants and Spares.

- The Licensee shall ensure availability of proper tools and plants and keep the work places in good condition for carrying out the required repairs/maintenance. Serviceability of tools and plants must be checked periodically and certified for their healthiness. The Licensee shall maintain an inventory of replacement spares required for maintenance purposes at suitable locations. A clear policy may be laid down by the Licensee in this regard and submitted to the Commission for reference.

22.

Training.

- The Licensee shall set up Training centers (or in coordination with the established Training centers) to impart proper and adequate training to its workmen and supervising staff in modern distribution practice, maintenance techniques and safety procedures. A syllabus suitable for the intended purpose shall be followed by them. The syllabus shall be submitted to the Commission for its perusal and approval.

23.

Research and Development.

- The STU shall, in consultation and approval of the Commission, carry out R&D to analyze and solve common operational and other problems related to distribution. Also they will be responsible for carrying out improvement and updation studies. The study results shall be properly communicated to all the distribution licensees for adoption. The expenditure towards the R&D work shall be met from a common fund for which the Commission shall prescribe the rate of contribution from each Licensee.

Chapter 6

Terms and Conditions for Supply of Electricity

24.

Terms and conditions for supply of Electricity.

- The terms and conditions for supply of electricity is meant to govern the supply of electricity and procedures thereof, including the powers, functions and obligations of the Licensee and the rights and obligations of the consumers and matters connected therewith and incidental thereto. The terms and conditions are not exhaustive as to the requirements to be complied with by Users connected or seeking connection to the Licensee's distribution system.

25.

System of Supply.

- The Licensee's declared voltage of supply will be generally as follows:

(a)

Low Tension Supply

(i)

Single phase 240 volts, 50 Hz A.C between phase and neutral.

(ii)

Three-phase 415 volts 50 Hz A.C between phases.

(b)

High Tension Supply

Three-phase 50 Hz A.C, 11,000 volts, or 22,000 volts and 33,000 volts between phases whichever is available.

(c)

Extra High Tension Supply

Alternating current - 50 Hertz Three- phase 66,000 volts, 110,000 volts and 230,000 volts between phases whichever is available.

For larger loads, the Licensee reserves the right to supply at higher voltages according to the convenience of the Licensee.

26.

Categories of Supply.

- Supply of electricity shall be made available to the consumer under the following categories:

(a)

Single-phase 2 wire 240 volts between phase and neutral for supply to a total connected load not exceeding 4000 watts (including power loads).

(b)

Three-phase 4 wire 415 volts between phases and 240 volts between a phase and neutral for supply to a total connected load exceeding 4000 watts but not exceeding a demand of 112 KW. The consumer may elect to avail supply under any one of the above categories where the connected load does not exceed 4000 watts

(c)

Three-phase 3 wire, 11,000 volts and above between phases for power installation exceeding a demand of 112 KW, the minimum demand however being 63 KVA

(d)

The consumer shall avail supply at 33 kV and above when the demand is 5 MVA and above

27.

Requisitions for Supply of Energy.

(1)

The provision regarding the duty of Licensee as detailed in section 43 [of the Act]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f 27.2.2008).]

to supply electricity on request is reproduced below:

(1)

[Save as otherwise provided in this Act,]

[Inserted as per Commission's Notification No. TNERC/DC/8-9 dated 22.5.2008 (w.e.f. 11.6.2008)]

every distribution licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application requiring such supply :

Provided that where such supply requires extension of distribution mains, or Commissioning of new sub-stations, the distribution licensee shall supply the electricity to such premises immediately after such extension or Commissioning or within such period as may be specified by the Appropriate Commission.

Provided further that in case of a village or hamlet or area wherein no provision for supply of electricity exists, the Appropriate Commission may extend the said period as it may consider necessary for electrification of such. village or hamlet or area.

[Provided that the licensee will refuse to supply electricity to an intending consumer who had defaulted payment of dues to the licensee in respect of any other service connection in his name]

[Inserted as per Commission's Notification No. TNERC/DC/8-1 dated 22.11.2005 (w.e.f. 7.12.2005).]

[Explanation. - For the purposes of this sub-section, "application" means the application complete in all respects in the appropriate form, as required by the distribution licensee, along with documents showing payment of necessary charges and other compliances.]

[Inserted as per Commission's Notification No. TNERC/DC/8-9 dated 22.5.2008 (w.e.f. 11.6.2008)]

(2)

It shall be the duty of every distribution licensee to provide, if required, electric plant or electric line for giving electric supply to the premises specified in sub-section (1)

Provided that no person shall be entitled to demand, or to continue to receive, from a licensee a supply of electricity for any premises having a separate supply unless he has agreed with the licensee to pay to him such price as determined by the Appropriate Commission.

(3)

If a distribution licensee fails to supply the electricity within the period specified in sub-section (1), he shall be liable to a penalty which may extend to one thousand rupees for each day of default.

(2)

Supply to Agricultural category: Application for supply to agriculture category shall be in Form 2 of Annexure III. In respect of the agricultural category, this provision shall be governed by the directives issued by the Commission from time to time, on the basis of the guidance on this matter by the National Electricity Policy (as stipulated in sub section 4 under section 86 of the Act) and the policy directions in public interest given by the State Government under sub section (1) of section 108 of the Act.

(3)

The application for HT supply shall be in Form 4. Application for LT supply (except Agricultural category) including Hut service shall be in Form 1 & 3 of Annexure III.

Note : Requisitions for supply of energy (Applications), even if incomplete, and irrespective of whether they are handed over in person or by post, should be acknowledged in writing. If they are in order, they shall be registered immediately and acknowledged. If they are incomplete, the defects should be indicated and returned without registration.

(4)

An intending consumer who is not the owner of the premises [

*)

[The words 'he occupies' omitted as per Commission's Notification No.TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

shall produce a consent letter in Form 5 of Annexure III to this code from the owner of the premises for availing the supply. If the owner is not available or [

*)

[The word 'he' omitted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

refuses to give consent letter, the intending consumer shall produce proof of his/her being in lawful occupation of the

premises and also execute an indemnity bond in Form 6 of the Annexure III to this code indemnifying the licensee against any loss on account of disputes arising out of effecting service connection to the occupant and acceptance to pay security deposit twice the normal rate.

(5)

[***]

[The words he occupies omitted as per Commission's Notification No.TNERC/DC/8-8 dated 8.2.2008 (w.e.f 27.2.2008)]

(6)

Where the intending consumer's premises has no frontage on a street and the supply line from the Licensee's mains has to go upon, over or under the adjoining premises of any other person (whether or not the adjoining premises is owned jointly by the intending consumer and such other person), the intending consumer shall arrange at his/her own expense for any necessary way leave, licence or sanction before the supply is effected. Even when the frontage is available, but objections are raised for laying lines / cables/ poles through a route proposed by the Licensee involving minimum cost and in accordance with the technical norms, to extend supply to the intending consumer, the intending consumer shall arrange at his/her own expense necessary way leave licence or sanction before the supply is effected. Any extra expense to be incurred by the Licensee in placing the supply line in accordance with the terms of the way leave, licence or sanction shall be borne by the intending consumer. In the event of way-leave, licence or sanction being cancelled or withdrawn, the intending consumer shall at his/her own cost arrange for any diversion of the service line or the provision of any new service line thus rendered necessary.

(7)

It shall not be incumbent on the Licensee to ascertain the validity or adequacy of way-leave, licence or permission obtained by the intending consumer. The consumer is liable for damages, if any, claimed by the person giving way-leave, licence or permission.

(8)

[***] [[Omitted as per Commission's Notification No. TNERC/DC/8-6 dated 10.9.2007 (w.e.f 3.10.2007) before omission stood as under:

'The application for H.T / L.T. industries under 'Red Category' or highly polluting as notified by the Government/ Tamil Nadu Pollution Control Board from time to time shall be received only on production of letter of 'consent to establish ' issued by Tamil Nadu Pollution Control Board along with the application by the prospective consumer.]]

(9)

In case of LT three phase supply, the Licensee shall ensure the following:

(i)

For all LT three phase services other than domestic and agricultural category, when the contracted demand exceeds 18.6 KW (25 HP), the meter in the service shall have the KW demand recording facility.

(ii)

For all LT three phase services other than domestic and agricultural category, when the contracted demand does not exceed 18.6 KW (25 HP) and KW recording facility is not available in the meter, the consumer shall not be permitted to have excess connected load over and above the contracted demand. The consumer shall however be permitted to opt for meters with KW demand recording facility, allowed to have connected load in excess of contracted demand and covered under the provisions of the excess demand charges as stipulated in the Supply Code.

(10)

Notwithstanding anything contained in this clause, the Licensee will refuse to supply electricity to an intending consumer for any industry, including welding purpose in any predominantly residential area, if in the opinion of the Engineer, such supply will cause voltage fluctuations in the supply to the area and consequent inconvenience in that area. The decision of the Engineer as to whether there will be voltage fluctuations in the said area shall be final and binding on the intending consumer. "Residential" area means area recognized as such by Municipal Corporations, Municipalities, Townships, Panchayats or such other local authorities constituted under any law for the time being in force. If however, the area under consideration is declared as a residential cum industrial area by the competent bodies, the above provision shall not apply.

(11)

The requirement to be notified by the Authority through regulations shall be complied with for availing the service connection.

(12)

[Supply shall be given in poromboke land on production of -

(i)

No Objection certificate obtained from the Officer (not below the rank of Deputy Tahsildar) or

(ii)

Where such No Objection Certificate could not be produced by the applicant for service connection the following undertaking shall be furnished: -

(1)

"I am aware that I am liable to be evicted and for supply disconnection at any time if the lands are required by the Government and / or any dispute arises at a later date and that electricity supply given in this regard will not confer any claim on ownership of the land.

(2)

I am aware that the above undertaking shall not confer permanent and full right to the ownership of the land.]

(13)

Within a door number or sub door number, an establishment or person will not be given more than one service connection.

(14)

[Where more than one person or more than one establishment is or intended to be in occupation of a door number or sub door number, more than one service connection will be given only if there is a permanent physical/electrical segregation of areas for which different service connections are applied for.]

[Substituted by Notification No. TNERC/DC/8-19, dated 01-07-2014.]

(15)

In case of flat system and shopping complexes where more than one flat or shops are located [with permanent physical segregation]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

, more than one service shall be given.

(16)

In case of non compliance by the Licensee, of the provisions as above, the intending consumer can approach the Consumer Grievance Redressal Forum [established under section 42(5) of the Electricity Act 2003]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

Explanation. - For the removal of doubts, the expression "other compliances" occurring in the Explanation to section 43(1) of the Act as reproduced in sub-regulation (1) above, shall include the following, namely: -

(a)

the compliance by the intending consumer of other laws of the State of Tamil Nadu relating to the obtaining of permit or approval or sanction or consent from the appropriate authorities as mentioned in such laws in regard to construction, alteration or repairs to buildings or establishment of new industries or factories or other establishments for which supply of electricity is required by such intending consumer;

(b)

the compliance by the intending consumer of the provisions contained in sub regulations (4), (11) and (12) above;

(c)

the compliance by the intending consumer of any decree or order or judgment of any civil court in regard to the supply of electricity or other requirements mentioned in such decree or order or judgment.

28.

Additional terms of supply as stipulated in section 48 of the Act reads as.

- "A distribution licensee may require any person who requires a supply of electricity in pursuance of section 43 to accept:

(a)

any restrictions, which may be imposed for the purpose of enabling the distribution licensee to comply with regulations made under section 53;

(b)

any terms restricting any liability of the distribution licensee for economic loss resulting from negligence of the person to whom the electricity is supplied."

29.

Service Lines.

(1)

More than one service connection in a door number/ sub-door number will be given if the second service connection is for a welding set in the same door number/sub -door number.

(2)

In agricultural connections where the consumer requires a separate service connection for utilizing energy for radios and other appliances including domestic lighting in the farm house, more than one service connection in the same Survey Field Number /sub-divided survey field number will be permitted.

(3)

Tire existing High Tension Consumers who want to avail a separate service for their expanded industrial activities within a door No., or sub-door No. (in the same premises) a new service connection shall be given, provided the extension is physically and electrically [segregated]

[Substituted for the expression 'demarcated' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

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(4)

Upon receipt of an application for supply of electricity, a notice will be sent to the intending consumer that he or his/her authorized representative to meet the Engineer to agree on the position of the point of supply, cutout or circuit-breaker and meter . The Licensee will in no case fix its meter, cut-out etc., nor allow the same to remain in any position which will entail entry by its employees into certain restrictive areas which are socially well defined. In case of service connection from OH line, the service mains shall be visible and accessible up to metering point for inspection.

(5)

The consumer shall provide free of cost to the Licensee adequate land/space in his/her premises, as may be considered necessary by the Engineer and afford all reasonable facilities for bringing in not only cables or overhead lines from the Licensee's system for servicing the consumer but also cables or overhead lines connecting other consumers. The land/space should be at a location near the entrance to the premises and should be easily accessible to Licensee's officials for inspection.

(6)

The Consumer shall permit the Licensee to install all requisite equipments such as Transformers, switch gears, meters etc., and to lay necessary cables or overhead lines and to provide connections thereto on the consumer's premises and shall also permit the Licensee to extend supply to other consumers through the cables, lines and equipments installed in the consumer's premises, provided that supply to the consumer in the opinion of the Engineer is not thereby unduly affected.

(7)

The Service Line once laid shall not be transferred, interfered with or shifted from one place to another except with the permission of the Engineer.

(8)

For housing the switch gears and meter cubicles of the Licensee, the High Tension Consumer shall provide and maintain at his/her own expense locked, weatherproof and fireproof enclosure of agreed design and location. The enclosure should preferably be in a building separate from the Consumer's substation and installation. Where this is not feasible, the equipments of the Licensee shall be completely segregated from the Consumer's equipments by fireproof walls.

(9)

The consumer shall permit the Licensee, free of cost, the use of any land belonging to the consumer which may be required for erecting the posts, lines, structures, cables and other equipments necessary for the supply of electricity and shall give access at all time to the Engineer and /or his/her agents, employees, sub-ordinates and workmen with or without tools to inspect and/or work on the posts, lines, structures, cables and other equipments and the consumer shall have no claim whatsoever on account of any damage to his/her property by reason of such erection of or any other work

on the posts, transmission lines, structures, cables and other equipments.

(10)

In all storied buildings irrespective of the number of floors, service connections (whether through overhead wires or through under-ground cables) will be effected normally at the ground floor. Service connections will also be effected, at the request of the consumer, at the basement floor of the storied building, provided the place where the Licensee's meters, cut-outs etc., are installed has direct and independent access from outside, is well ventilated, has sufficient headroom and the doors provided for the service room have adequate fire resistance property and water proof and free from water logging.

(11)

In storied building sufficient space at a suitable place shall be made available free of cost to the Licensee for installing transformers, switch gears etc., in addition to the space requirements stated below.

(12)

[For any building / premises requiring LT service connection(s) having either (a) total floor area of 900 square meter and above (excluding the stilt floor / basement floor) or (b) the total demand of all the LT services in the building exceeds 150 kW] [[Substituted as per Commission's Notification No. TNERC/DC/8-1 dated 22.11.2005 (w.e.f. 7,12.2005)Before substitution stood as under:

'For storied buildings having a total floor area of 900 square metre and above, and multistoried building i.e. Ground plus three or more floors including stilt floor/ basement floor for Low Tension Service Connection.]].

(i)

(a)

an electrical room with RCC roof having clear floor area 6 metres W 4 metres with a vertical clearance of 2.75 metres with locking facility, exhaust fans and adequate size of cable duct, shall be provided at the ground floor within the consumer premises of storied buildings nearer to the main entrance for installing floor mounted distribution transformer and associated switchgear or

(b)

a clear space of [10 metre W 4 metre or 5 metre W 5 metre]

[Substituted for the expression '10m]N 4m or 5m W 5m' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

open to the sky shall be provided within the consumer premises preferably at the main entrance for installing structure mounted distribution transformer and associated switchgears, and

(ii)

[Space as per the following norms shall be allotted for establishment of a sub-station/switching station in places of group housing/commercial complex where the total demand exceeds 5 MVA. These areas shall be specifically shown in the plan.

[Substituted by Notification No. TNERC/DC/8-12, dated 24.8.2009 (w.e.f.16.9.2009).]

The requirement of land for establishment of sub-stations shall not exceed the limit given below:

Voltage level of the sub-station

Land Requirement in Sq.Mts.

Normal sub-station

Compact sub-station

33 KV Sub-Station

1520 (indoor) 3160 (outdoor)

225

110 KV Sub-Station

4000 (outdoor)

1050

230 KV Sub-Station

16000 (outdoor)

7750

Note: - (a) in places situated within 60 Kilo Meters from the periphery of the Metropolitan/Corporation limit, the licensee may establish the Compact Sub-Station;

- (b)
in places situated within 30 Kilo Meters from periphery of the Municipality limit, the licensee may establish the Compact Sub-Station;
- (c)
in places situated within 10 Kilo Meters from the periphery of the Town Panchayat limit, the licensee may establish the Compact Sub-Station;
- (d)
in other places, the licensee may establish the Sub-Station of his choice;
- (e)
the land area should have the proper approach road atleast on any one side of the land for easy transporting of power transformer;
- (f)
the dimension of the land area shall be as per the suggestions of the Licensee to the consumer.]

(13)
An approach road of not-less than 3 metres width shall be provided from the public road to the electrical room/open space earmarked for installation of distribution transformer, associated switchgear, sub station / switching station.

Note 1: The specific requirement to provide space, as per the sub-regulations (12) and (13) of this regulation shall be made known to the consumers / builders / owners at the initial stages itself, when they approach with applications for extending temporary or regular supply.

Note 2: The Chief Executive Officer of the Distribution Licensee (presently the Chairman / TNEB) may approve the relaxation against the requirement stipulated in sub-regulations (12) and (13) of this regulation in exceptional cases provided he is satisfied that:

- (a)
the supply to such premises can be satisfactorily fed from the existing Distribution Transformer / other sources
- (b)
the quality of the power supply will not be affected even in future due to growth of the load in the premises / near by area
- (c)
no compromise has been made on technical requirements by relaxing the above criteria.
- (d)
non availability of the space / alternate provisions is confirmed by the Licensee after a site inspection

(14)
For High Tension service connections: -

- (a)
[For indoor metering, an electrical room with RCC roof having a clear floor area 5mx6m with a vertical clearance of 3.7 metres between the floor and the ceiling/beam bottom with locking facility, exhaust fan and adequate size of cable duct shall be provided at the ground/basement floor for installing the Licensee's equipments, etc. This room shall be of fireproof and weatherproof] [[Substituted as per Commission's Notification No. TNERC/DC/8-1 dated 22.11.2005 (w.e.f. 7.12.2005)Before Substitution stood as under:

(sic)
storied buildings having a total floor area of 900 square meter and above multistoried building i.e. Ground plus three or more floors including stilt floor/ basement floor for Low Tension Service Connection.]]

- (b)
For outdoor metering, a clear space of [10 metre W 4 metre or 5 metre W 5 metre]
[Substituted for the expression '10m W 4m or 5m W 5m' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]
open to sky shall be provided.

This enclosure shall be at the periphery of the building and shall be cut off from other portions of the premises by fire resistance walls. These areas shall be specifically shown in the plan. Before the plan is sent to the competent authority for approval, it shall be sent to the Engineer and got approved. The point of supply shall be within 30 meters from the main gate easily accessible and visible and satisfactory with regards to security aspects. Failure to comply with the above requirements will result in denial of supply.

[Provided that the Chief Executive Officer or any other Officer, not less than in the rank of a Chief Engineer, authorized by the Chief Executive Officer may approve the point of supply at a place beyond 30 meters from the main gate, if he is satisfied that such place is -

(a)

easily accessible and visible to the officials of the licensee;

(b)

is safe and secure; and

(c)

is not susceptible to malpractice. Also there shall be no compromise on technical grounds, while relaxing the distance criteria.]

(15)

With medium voltage supply i.e. above 250 volts and up to 650 volts, the Licensee's meter and service cutouts shall be enclosed in a strong vermin proof and water proof box suitably ventilated and provided with suitable locking arrangements at the consumer's cost at the location convenient to licensee for meter reading etc. All wires shall be made inaccessible to unauthorized persons. A 'caution' board shall be fixed thereto.

(16)

Having agreed on the position of point of supply, the Engineer will render to the intending consumer an estimate for the cost of laying the service line. Any work of laying the service line will be taken up only after the intending consumer pays the estimated amount in advance in full. The charges payable by the intending consumer for service line shall be as estimated by the Licensee from time to time.

(17)

The entire service line will be the property of the Licensee and the Licensee will maintain it at his/her cost.

(18)

The Licensee will also have the right to use the service line for supply of electricity to any other person.

30.

Consumer's installation.

(1)

[The consumer's installation should invariably comply with the statutory provisions contained under section 53 of the Act relating to wiring and equipment. The responsibility with regard to maintenance or testing of equipments and wiring on consumer's premises shall lie upon the consumer.] [[Substituted by Commission's Notification No TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008) Before substitution it reads as under:

'The consumer's installation should invariably comply with the statutory provisions of the rules framed under Act relating to wiring and equipment. The responsibility with regard to maintenance or testing of equipments and wiring on consumer's premises shall vest with the consumer. The regulations made by the Regional Tariff Advisory Committee under the Insurance Act 1938 (Central Act IV of 1938) applicable to the electrical equipments in buildings shall be complied with by the consumers.]]

(2)

No cutout, link or switch (other than a linked switch arranged to operate simultaneously on the earthed neutral conductor and live conductors) shall be inserted or remain inserted in the earthed neutral conductor of the system.

(3)

If any alteration is carried out either in equipment or in wiring, the same shall be intimated to the Licensee for updating the Test Report.

(4)

The consumer must in all cases provide quick-break linked switches and a main fuse/ MCB on each live conductor except the earthed neutral. The linked switch must be erected within a metre of the Licensee's meter board or in such other position as may be required/ approved by the Engineer. Where a conductor forming part of the consumer's system is to be connected to the Licensee's earthed neutral conductor, an indication of a permanent nature shall be provided by the consumer at the point where such connection is to be made to enable the conductor to be distinguished from any live conductor. The consumer shall provide a cable loop of at least one meter for each connection to the Licensee's meter board in the same room. In the case of High Tension supplies, suitable circuit breakers must be installed on the low-tension side of the transformer or on each of the individual low-tension feeder.

(5)

All electric motor used in all new Low Tension service connections shall be of ISI marked with manufacturers name plate indicating rating and capacity permanently affixed on it.

(6)

If at the time of effecting service connections under the Low Tension Domestic, Educational and other special institutions, etc., and General purpose category (presently Commercial and other categories), it is found that the assessed capacity is in excess of the capacity applied for by the consumer, the Engineer will include the assessed capacity in the Test Report and effect supply.

[Provided such excess capacity does not result in any increase in the demand applied/sanctioned and such assessed capacity is commensurate with the capacity of the meter and service line provided and does not involve either change of category of supply or improvements to the distribution mains.]

[Inserted as per Commission's Notification No TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

(7)

All transformers, switchgears, control equipments and other electrical equipments belonging to the consumer and connected to the mains of the Licensee shall be maintained to the reasonable satisfaction of the Engineer of the Licensee and shall be in conformity with the applicable Acts, Codes, Rules and regulations etc.,

(8)

Before any wiring or fitting of motor or any other electrical equipment is connected to the system, the same shall be subject to the inspection of the Engineer of the Licensee. However, this condition will not apply to Low Tension Service Connections under the Tariffs for Domestic, Educational and other special institutions, and General Purpose categories (Commercial and other categories).

(9)

All High Tension installations and their associated medium voltage and low voltage installations will have to comply with the applicable safety and security rules prescribed by Authority/Government/Commission.

(10)

If the connected load of any installation exceeds 15 amperes at 240 volts the installation shall be wired on the group system, separate neutral wires being brought back in each case to the point of supply. Each circuit shall have a distinct control switch. The lamps, fans and other equipments in the installations shall be so grouped that under normal conditions the current will be balanced and no current will flow in the neutral wire.

(11)

A caution Board printed in Tamil and English shall be affixed by the Licensee on the meter board of each service.

(12)

In order to save the expenses of a long underground service connection on private property, consumer may, with the Engineer's approval, erect a pillar on that portion of his/her property which will be the metering point nearest to the Licensee's supply mains into which the service shall be laid and from which the consumer shall run overhead lines / UG cables to his/her premises. These overhead mains shall constitute portion of his/her installation, and shall be laid in compliance with the applicable Safety Rules. An efficient lightning arrester may be fixed at the commencement of the overhead line at the consumer's cost, should he desire the same, as an additional protection for his/her installation.

(13)

Gas and water pipes shall on no account be used for earthing purposes. All wiring shall be kept as far as possible away from gas and water pipes.

(14)

All wall plugs shall be of the three-pin type, the third pin connected to earth. All plugs shall be provided with switches on the live wire and not on the neutral.

(15)

Motors shall be provided with control gear so that the maximum current demand of the consumer's installation does not in any case exceed the limit given in the following schedule.

Nature of supply

Size of installation

Limit of maximum current demand

Single Phase

Up to 3 H.P

Full load current W 6

Three Phase

i. Up to 3 HP

Full load current W 6

ii. Above 3 HP and up to 15 HP

Full load current W 2

iii. Above 15 HP and up to 100

HP Full load current W 1.5

iv. Above 100 HP

Full load current W 1.25

Note: - 1. The capacity may exceed for the single-phase motors in areas where High voltage Distribution System using Single phase Distribution Transformers is implemented.

2. Providing of automatic switching facilities to the three phase motors with a direct on line starter is prohibited.

3. The use of phase shifters (to operate the three phase motors during two phasing by the Licensee) in respect of Agricultural services by the consumers is prohibited.

Failure to restrict within these limits and also to comply with the above requirements will render the service connection liable for disconnection.

(16)

Three-phase motor circuits shall be controlled by triple-pole switch with no-volt release and fuse protection. It is important that the release should be maintained in working order. Functionally equivalent controls shall also be acceptable. Wiring for such motors shall be run with all wires bunched in a conduit, which shall be efficiently earthed through and connected to the frame of motor from which two separate and distinct earth wires shall be run. The earth wire shall be preferably of copper.

(17)

In the case of temporary supply, the consumer shall provide current limiting switch of appropriate capacity and capacitor, if any required.

31.

Inspections, testing and effecting supply.

(1)

After completion of the wiring, notice must be sent to the Engineer by the intending consumer (upon printed test report form obtainable free of cost from the offices of the Licensee) that the installation has been completed and tested and that the same is complete and ready for inspection and test by the Engineer. Notice of the Engineer's intention to inspect and test the installation will be sent to the intending consumer who must be present or his/her competent representative at the time fixed to give information that may be necessary concerning the installation. [Upon executing / signing of the test report, a copy of the test report shall be given to the consumer]

[Inserted by Commission's Notification No TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

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(2)

The intending consumer shall avail himself of the supply within three months in case of HT and one month in case of LT from the date of issue of notice in writing, informing him that supply is available.

(3)

[If the intending consumer fails to avail the supply within the above period, a further three months notice in case of HT and one month notice in case of LT will be sent to the intending consumer to avail the supply. If he does not avail himself the supply during this notice period, the application will be treated as lapsed and cancelled in the case of Low Tension supply, and the application shall be treated as cancelled, terminating the agreement, in the case of High Tension supply. The service connection charges and the Security Deposit/development charges, etc. except Meter Caution Deposit will be forfeited. In case the intending consumer could not avail the supply under force majeure conditions, the Security Deposit and meter caution deposit shall be refunded to the intending consumer.]

[Substituted by Notification No. TNERC/DC/8-19, dated 01-07-2014.]

(4)

However, Licensees of the Distribution are delegated with powers to condone the delay on specific request from them if received before expiry of second notice period and to accord approval to effect supply any day after the date of expiry of second notice of availability of supply without forfeiture of development and other charges and cancellation of application subject to his/her consent to pay monthly minimum charges up to the date of availing supply.

(5)

If the intending consumer avails supply during the notice period of availability of supply he shall pay the monthly minimum charges at the notified tariff rate for the period from the date of issue of first notice of supply availability till the date of availing supply.

(6)

Requisition for supply or additional supply of electricity should be made in the prescribed form obtainable from the local office of the Licensee sufficiently in advance of the date of requirement of supply. Such Forms can also be made available in downloadable mode in the Licensee's website or allowed to be printed by others and made available in open market. The requisition should be made by the owner, or occupier, of the premises for which supply is required, and should indicate his / her full name and address. Any assistance or information required in filling up the form has to be given to the intending consumer at the local offices of the Licensee.

32.

Licensee's supply mains and equipments.

(1)

The Licensee may provide in Low Tension service connections its own meter, board, cut-out and other equipments and for High Tension Service connections, its own circuit breaker, High Tension fuses and other equipments and these will remain the property of the Licensee and must on no account be operated, handled or removed by anyone, who is not an employee of the Licensee, unless authorized by the. Licensee. [If the consumer elects to purchase a meter, it shall be tested, installed, operated, maintained and sealed by the licensee. The consumer shall claim the meter purchased by him as his asset only after it is permanently removed from the system of the licensee.]

[Inserted by Commission's Notification No TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

(2)

The Licensee will have the right to use its supply lines and equipments provided under the conditions above and to lay cables under, across, over or through the consumer's premises for supply to other premises in the neighborhood.

(3)

The consumer shall not interfere in any manner with the property of the Licensee and shall be fully responsible for the safety of the property of the Licensee in the consumer's premises. In the event of any loss or damage caused to Licensee's property by any act, neglect or default of the consumer, his/her servants or persons employed by him or due to any reason other than force majeure conditions the consumer shall compensate the Licensee for the cost of necessary repairs or replacements as may be indicated by the Engineer, within thirty days of issue of the bill in this behalf. Non-payment of such bill by the consumer shall entail disconnection of supply under section 56 of the Act.

33.

Agreements.

(1)

All intending consumers shall execute an agreement governing the supply of electricity in the form prescribed at the time of paying the Security Deposit and the service connection charges. The work of extension of supply will be taken up for execution only after the agreement is executed and the Security Deposit and the service connection charges, etc. are paid. For LT consumers other than agricultural and industrial consumers the application is treated as application-cum-agreement. In case of LT agriculture and industrial services, the agreement shall be in Form 7 in Annexure III and in case of HT consumers, the agreement shall be in Form 8 in Annexure III

(2)

Every agreement is for a specific purpose and a specified location. The Engineer may at his/her discretion permit a consumer to change the point of supply from one place to another on such terms as may be prescribed by the Licensee including payment of charges incidental to such change.

(3)

The agreement can be terminated by the consumer at any time by giving one month's notice in writing to the Licensee expressing his/her intention to do so.

(4)

The Licensee can terminate the agreement of a consumer at any time by giving one month's notice if the consumer has violated the terms of the agreement or the terms and conditions of this Code or the provisions of any law relating to the agreement including the applicable Acts and Rules under the Act and other orders from time to time. [The Licensee shall inform the consumer regarding the grounds for such termination] [[Substituted by Commission's Notification No TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008. Before substitution stood as under:

'It is obligatory on the part of the Licensee to inform the consumer regarding the grounds for such termination]] It is obligatory on the part of the Licensee to inform the consumer regarding the grounds for such termination.

(5)

[In the case of termination of the agreement either by the consumer under sub-regulation (3) or by the licensee under sub-regulation (4), as the case may be, the licensee shall recover the dues if any due from the consumer after making such adjustment of the dues, due to him by the consumer as may be necessary to clear the dues from the consumer against the security deposit or additional security deposit or any other deposit made by the consumer and after making such adjustment, refund the balance deposit, if any, to the consumer within three months from the date of termination of the agreement.]

[Inserted by Commission's Notification No TNERC/DC/8-7dated 3.12.2007 (w.e.f. 19.12.2007).]

34.

Earnest money deposit.

(1)

The applicants required to pay Earnest Money Deposit will be asked to pay Earnest Money Deposit along with registration fee for registration of application.

(2)

This Earnest Money Deposit will be adjusted against the quantum of initial Security Deposit payable by the applicant before availing supply and balance amount if any shall be collected.

(3)

In respect of High Tension applicant the Earnest Money Deposit payable will be equal to the quantum of initial Security Deposit.

(4)

If the applicant backs out after registration and payment of E.M.D. but before payment of Development charges, Service Connection charges and Meter Caution Deposit, then the application shall be cancelled and E.M.D. forfeited.

(5)

If the applicant backs out after payment of all charges and execution of agreement, the application shall be cancelled and agreement terminated forfeiting all amount remitted except meter caution deposit in the case of both High Tension and Low Tension.

(6)

If the H.T. applicant who prefers to back out partially against the sanctioned demand before availing supply, then the above forfeiture rule may be applied proportionate to the demand backed out.

(7)

The Earnest Money Deposit paid does not bear any interest until the date of service connection.

35.

Security deposit.

(1)

All applicants for supply of electricity shall pay initial Security Deposit, before availing of the supply, in Cash/ [***] [The word 'cheque' omitted by Commission's Notification No.TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008).] Demand draft at the rate fixed by the Commission from time to time.

(2)

The following categories of service connections may be exempted from payment of Security Deposit:

(i)

Service connections in the name of the State Government Departments

(ii)

Service connections to premises occupied by Foreign Diplomats or Consulate Establishments, irrespective of whether

the service connection is in their name or not.

(3)

Applicants for supply of electricity for agricultural and hut service connections shall pay Security Deposit equivalent to seven months levy of lump sum charges / metered energy charges or the amount notified by the Commission from time to time.

(4)

Interest will be paid by the Licensee on Security Deposit at the rate as may be fixed by the Commission from time to time. Full calendar months only will be taken into account for the purpose of calculating the interest and the interest will be calculated to the nearest rupee i.e. 50 paise or above will be rounded off to the next higher rupee and less than 50 paise will be ignored.

(5)

If the consumer is prepared to take supply through pre payment meter such consumer is not required to pay security deposit.

36.

Access to premises, installations and equipments.

- The access to premises, installations and equipments is subject to the provisions envisaged under sections 163 of the Act, which reads as:

(1)

A licensee or any person duly authorized by a licence may, at any reasonable time, and on informing the occupier of his intention, enter any premises to which electricity is, or has been, supplied by him, of any premises or land, under, over, along, across, in or upon which the electric supply-lines or other works have been lawfully placed by him for the purpose of -

(a)

inspecting, testing, repairing or altering the electric supply lines, meters, fittings, works and apparatus for the supply of electricity belonging to the licensee; or

(b)

ascertaining the amount of electricity supplied or the electrical quantity contained in the supply; or

(c)

removing where a supply of electricity is no longer required, or where the licensee is authorized to take away and cut off such supply, any electric supply-lines, meters, fittings, works or apparatus belonging to the licensee.

(2)

A licensee or any person authorized as aforesaid may also, in pursuance of a special order in this behalf made by an Executive Magistrate and after giving not less than twenty-four hours notice in writing to the occupier, -

(a)

enter any premises or land referred to in sub-section (1) for any of the purposes mentioned therein;

(b)

enter any premises to which electricity is to be supplied by him, for the purpose of examining and testing the electric wires fittings, works and apparatus for the use of electricity belonging to the consumer.

(3)

Where a consumer refuses to allow a licensee or any person authorized as aforesaid to enter his premises or land in pursuance of the provisions of sub-section (1) or, sub-section (2), when such licensee or person has so entered, refuses to allow him to perform any act which he is authorized by those sub-sections to perform, or fails to give reasonable facilities for such entry or performance, the licensee may, after the expiry of twenty-four hours from the service of a notice in writing on the consumer, cut off the supply to the consumer for so long as such refusal or failure continues, but for no longer.

37.

Shifting of service connection.

(1)

The cost of shifting a new service connection for which line is laid but service connection is yet to be effected shall be borne by the intending consumer. The intending consumer shall pay the above charges in advance in full. The copy of the estimate shall be given to the intending consumer. The shifting work will be taken up only after the payment is made.

The estimate will cover the following: -

(i)

Materials dismantled in the old site and reusable shall be used in the new site as far as possible.

(ii)

10% of the present value of the dismantled and reusable materials towards charges for dismantling and charges for loading, unloading, transport to the new site/store.

(iii)

Cost of the new materials required for the shifting work.

(iv)

Add 5% of the cost of new materials towards loading, unloading and transport to new site.

(v)

Add 10% of the present value of all the materials to be erected in the new site towards erection charges.

(vi)

5% of the present value of retrievable scrap materials towards transport charges.

(vii)

Due credit shall be given to the intending consumer / applicant as below but however limited to the total estimated cost of new work:

(a)

Book value/written down value subject to a minimum of 20% of the cost of retrievable and reusable materials but not used in the new site.

(b)

Scrap value on the retrievable but not reusable materials at not less than 10% of its original value.

(2)

After completion of the work, a revised estimate shall be prepared with a copy to the intending consumer based on the actual cost of materials, loading, unloading, transport and erection charges. If the original estimate cost is more than the revised estimate, the balance shall be refunded to the intending consumer within 3 months. If the original estimate cost is less than the revised estimate, the difference shall be collected from the intending consumer.

(3)

With regard to shifting of existing service connection, the consumer shall pay all the arrears due to the Licensee, apart from the above shifting charges.

38.

Restrictions on use of electricity.

- The consumer shall curtail, stagger, restrict, regulate or altogether cease to use electricity when so directed by the Licensee, if the power position or any other emergency in the Licensee's power system or as per the directives of SLDC/ SSLDC warrants such a course of action. The Licensee shall not be responsible for any loss or inconvenience caused to the consumer as a result of such curtailment, staggering, restriction, regulation or cessation of use of electricity. Notwithstanding anything contained in any agreement/ undertaking executed by a consumer with the Licensee or in the tariff applicable to him, the consumer shall restrict the use of electricity in terms of his/her maximum demand and / or energy consumption in the manner and for the period as may be specified in any order that may be made by the Licensee on the instructions of State Government or the Commission.

39.

[Temporary supply.

[Substituted by Notification No. TNERC/DC/8-17, dated 06-09-2013.]

- Temporary supply of electricity to any premises shall be dealt with as below: -

(1)

If the temporary supply as in the case of construction of building etc. is to be converted into permanent supply after completion of the construction, normal procedure to effect the supply to regular categories shall be followed and the consumer shall be charged under temporary supply tariff, i.e., permanent supply procedure shall be adopted with temporary supply tariff. An undertaking shall be obtained from the consumer to the effect that the consumer will accept to convert the temporary supply into appropriate permanent category after completion of the construction work in accordance with the regulations in force and to pay the charges if any arising out of such conversion. In such

conversion, if conversion from lower voltage to higher voltage is involved, the existing lower voltage service connection shall be closed and new higher voltage service connection shall be provided in accordance with the regulations in force. In case of conversion or closing of existing service connection account involves dismantling of part or whole of existing service line or erection of part or whole of service line or improvement of part or whole of existing service line or combination of the above credit/debit shall be given to the consumer as below: -

(i)

Book value /written down value subject to a minimum of 20% of the cost of retrievable and reusable materials shall be credited.

(ii)

Scrap value on the retrievable but not reusable materials shall be credited and this value shall be not less than 10% of its original value. No credit or debit shall be levied on the non-retrievable materials.

(iii)

Dismantling, transport and overhead charges shall be chargeable to the consumer.

(iv)

Cost of material, transport and erection charges for the part or whole of the new service line or improvement to the existing service line shall be chargeable to the consumer.

(2)

In case of providing supply purely for the temporary purpose, the following procedure shall be followed,

(i)

Cost of extension/improvement of lines for providing the supply shall be charged to the consumer.

(ii)

Security deposit equivalent to three times of the tariff charges for the consumption as calculated below shall be collected and maintained throughout the temporary supply period:

Security Deposit = $3 \times L \times LF \times H \times D \times T$

Where,

L = Connected Load in kW

LF = Load Factor = 0.5

H = Number of hours of a day = 24 Hours

D = Number of days of billing cycle period as specified in regulation 8(3) of the Supply Code/proposed period of use whichever is less

T = Tariff rate of Temporary supply as specified by the Commission from time to time

(iii)

The security deposit shall be reviewed during every billing cycle or proposed period of use and enough care shall be taken to maintain the security deposit at the average level of consumption subject to the minimum of the calculated level till the closing of the temporary supply account. At any time, if the security deposit is found to be less than the amount specified, the additional security deposit shall be collected along with the Current Consumption charges.

(iv)

The temporary supply account shall be closed after the completion of temporary supply period and credit shall be refunded to the consumer as specified in sub regulation (1) of this regulation. The Licensee shall refund the balance deposit, if any after the temporary supply period is over within a period specified by the Commission.]

40.

Energy conservation.

- Promoting efficient use of energy including energy audit towards this end and energy conservation by all the consumers and the Licensee shall be mandatory as per the provisions contained in the Energy Conservation Act 2001 subject to the condition that such stipulations are not inconsistent with the Electricity Act 2003.

41.

Service of notice.

- All letters, bills and notices including those under statutory requirements will be sent by the Licensee to the consumer by ordinary post or by messenger. Documents of notices so dispatched shall be presumed to have been duly received by the consumer on the date on which he could be reasonably expected to receive the same. The Licensee may, if it chooses, adopt any other mode of service of documents and notices to the consumer.

42.

[Knowledge of Acts, Rules, Regulations, Orders, etc. [[Substituted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008) Before substitution it was as under:

42. Knowledge by facts, rules, orders, etc.: Subject to the provisions contained in Note 1 to sub-regulation(13) of regulation 29, the consumer will be deemed to have full knowledge of the provisions of 'applicable Acts, Rules and all regulations and notifications made there under. The consumer shall act in due conformity with all the applicable Acts, Rules and all regulations mentioned above and, if he does not so act, his/her supply may be discontinued without prejudice to any other action that may be taken by the Licensee.]]

- Subject to the provisions contained in the Note 1 to sub-regulation (13) of regulation 29, the consumer will be deemed to have full knowledge of the provisions of 'applicable Acts, Rules and all Regulations and Notifications' made there under. The consumer shall act in due conformity with all the applicable Acts, Rules and all Regulations and Notifications mentioned above.] [[Substituted as per Commission's No TNERC/DC/8-2 (1) dated, 14.06.2006 (w.e.f. 23.2.2006) which before substitution stood as under:

Provided that the Chief Executive Officer of the Licensee may approve the point of supply at a place beyond 30. meters from the main gate, if he is satisfied that such place is

(a)

easily accessible and visible to the officials of the licensee

(b)

is safe and secure and

(c)

is not susceptible to mal practice.

Also there shall be no compromise on technical grounds, while relaxing the distance criteria.]]

43.

Interpretation.

- These terms and conditions shall be read and construed as being subject in all respects to the provisions of the Act, Rules, and regulations in force and as amended from time to time.

Chapter 7

Recovery Charges

44.

The Licensees are entitled to collect the charges from a person requiring supply of electricity any expenses reasonably incurred in providing any electrical line or electrical plant used for the purpose of giving that supply. These charges have also to be reviewed either periodically or at times of an urgent need for a revision. The consumers are liable to pay such charges as applicable and at the rates specified by the Commission from time to time through separate orders/ notifications. The various charges to be collected are furnished in the following clauses.

45.

Service Connection Charges.

(1)

Regarding the recovery relating to service connection charges:

(i)

For connecting up an installation, the Licensee shall be entitled to charge the consumer the actual cost of materials upto meter board, labour, transport plus overhead charges.

(ii)

Extension, improvement or alteration to service lines to meet any additional demand will be charged on the same basis. In each case, the consumer will be furnished with an estimate of the cost of the work and this amount is payable in advance. On completion of the work, a bill for the actual amount payable will be forwarded to the consumer and any difference shall be paid by the consumer or will be refunded by the Licensee as the case may be.

(iii)

The estimate for service connection charges may also include the service connection charges for metering referred to in regulation 45(2). The licensee shall give due credit for the materials if any supplied by the consumers.

(2)

Service connection charges for metering:

The licensee is authorized to collect service connection charges for metering.

46.

Meter Security Deposit.

- The Licensee is authorized to collect security for the price of meter from LT/FIT consumers at the rates specified by the Commission from time to time and enter into an agreement for hiring of the meter. The Licensee may permit the consumer to install his/her own meter. However, it shall be calibrated by the Licensee.

Note: - 1. The above rate shall also apply to L.T. Temporary Supply.

2. Interest is payable on the above deposit at the rate specified by the Commission from time to time. The deposit shall be refunded after termination of service agreement, as per rules.

3. If a consumer elects to purchase his own meter, he is not required to pay Meter Security Deposit.

47.

Development Charges.

- The Licensee is authorized to collect development charges from LT/HT consumers at the rates specified by the Commission from time to time.

Note: - (1) The above development charges (one time payment) shall be collected from all applicants both for new and additional loads.

(2)

For additional loads applied in the existing service the same rates are applicable.

(3)

In case of conversions from Single Phase to Three Phase the difference in the development charges shall be collected provided the initial development charges were paid while availing Single Phase Service.

(4)

One fourth of the development charges shall be applied to temporary supplies.

48.

Earnest Money Deposit (EMD).

- The Licensee is authorized to collect Earnest Money Deposit from all applicants for HT and LT industrial applicants at the rates specified by the Commission from time to time. This will be adjusted against the quantum of initial Security Deposit payable by the applicants before availing supply.

49.

Security Deposit.

- The Licensee is authorized to collect initial security deposit at the rates specified by the Commission from time to time. Wherever Earned Money Deposit has been adjusted against the initial security deposit the balance if any will be collected from the applicants before giving supply.

50.

Code to be read along with Supply Code, Electricity Act 2003 and amendments etc.

(1)

This Code shall be read along with the Supply Code, the Tamil Nadu Electricity Grid Code and other relevant provisions of the Act, along with amendments thereon, rules and regulations made there under.

(2)

Where any of the provisions of this Code is found to be inconsistent with those of the Act, rules or regulations made hereunder, notwithstanding such inconsistency, the remaining provisions of this Code shall remain operative.

(3)

Where any dispute arises as to the application or interpretation of any provision of this Code, it shall be referred to the Commission whose decision shall be final and binding on the parties concerned.

(4)

Wherever extracts of the Electricity Act 2003 are reproduced, any changes / amendments to the original Act shall automatically be deemed to be effective under this Code also.

Chapter 8

Code Review Panel

51.

Appointment of Code Review Panel etc.

- [(1) The Commission may appoint a Code Review Panel (hereafter in this Chapter referred to as "Panel") consisting of
-
- (a)
A Chairperson at the level of Director of the Distribution Licensee.
- (b)
A Member Secretary, who shall be the Chief Engineer/Commercial of the Distribution Licensee.
- (c)
One Member from the SLDC who is not below the rank of Chief Engineer.
- (d)
Three representatives from the Distribution Licensee who are not below the rank of Chief Engineer and one representative from the Distribution Licensee who is not below the rank of Chief Financial Controller.
- (e)
One representative from LT domestic consumer sector, one from LT commercial sector, one from LT industry sector and one from LT agricultural consumer sector.
- (f)
One member representing the EHT / HT consumers.
- (g)
One member representing open access consumers.
- (2)
The Member Secretary shall arrange for the Panel meeting. The tenure of the members mentioned under clauses (e), (f) and (g) of sub-regulation (1) shall be three years. The members, on expiry of their term, are not eligible for re-nomination.]
- [Substituted by Notification No. TNERC/DC/8-19, dated 01-07-2014.]
- (3)
The functions of the panel are -
- (a)
to review the working of various provisions of this Code, the Tamil Nadu Electricity Grid Code and the Supply Code.;
- (b)
to consider the suggestions received from Licensees, consumers and other interested persons;
- (c)
to consider and offer its views on any specific matter as may be referred to it by the Commission.
- (4)
Manner of reviewing the Code -
- (i)
Any licensee, consumer or other interested persons desiring any change in this Code shall send the proposal in writing to the Panel specifying the reasons for such change and setting out the attendant circumstances. For this purpose, the licensee may hold meetings with the consumer or group of consumers if it is considered that the Code may require changes to meet the individual requirements of the consumer or group of consumers.
- (ii)
The Panel shall, upon receipt of such proposal or where the Commission has made a reference, forward the same to the STU for its consideration and written comments.
- (iii)
The Panel shall convene a meeting of its members to consider the comments of the STU, and if necessary at its discretion, invite and hear the person who made the suggestions for change and other interested persons and also the local authorities and telecommunication companies.
- (iv)
The Panel may, in considering the suggestion and the comments of the STU thereon, set up sub committees to study the related issues.
- (v)
The Panel after finalizing its views on the modifications to the Code, forward the same to the Commission:
Provided that the Panel may supplement its own procedure in addition to the procedure laid down herein for conducting

its meetings and in carrying out its functions.

(5)

The Commission may approve the changes with or without modification as it may deem fit and cause the publication of the same in such manner as may be necessary.

Annexure I

Load Data for Demands of 1 MW and above

(Refer clause 6(3))

1. Type of Load
2. Minimum Demand (KVA)
3. Year/Years by which full / part supply is required
4. Load location details
5. Rated Voltage and Frequency
6. Expected load curve
7. Withstand level of equipments/devices for the fluctuations, surges, swells, flickers and spikes
8. Characteristics of the loads (State whether the loads are steel melting furnace Arc/induction furnace and rolling mills, traction, containing welding sets in large numbers, software, park, etc)
(Furnish location map to scale, indicate details of nearest consumer and category / capacity)
- i. Motors (with a specific focus on variable speed motors; soft start motors; fans; Blowers etc.) (State purpose and number of Installations, voltage and KW rating, starting current, type of Motors, types of drives and control arrangements.)
- ii. Heating (Type and KW rating)
- iii. Furnace (Type, Furnace Transformer Capacity and voltage ratio)
- iv. Computer, Inverters, UPS and other switched mode supply unit
- v. Electrolysis (Purpose, kVA capacity)
- vi. Lighting (types of lighting used) (Low loss energy conservation lamps, fluorescent Lamps, M.V Lamps, Sodium Vapour lamps) demand in kVA
- vii. P.F improvement capacitors/ Capacitor Banks (Nos, Capacity in MVAR)
- viii. Air conditioning / Chilling plant
- ix. Electronic Regulator for fan
- x. Phase unbalance imposed on system
- (a)
Maximum (%)
- (b)
Average (%)
9. Maximum harmonic content imposed on the supply system on the end consumer level in percentage of fundamental voltage/current.
10. Details of any loads, which may cause demand fluctuations of greater than 10 MW at the point of connection, including Voltage Dips (percentage) lasting for 5 seconds and more
MVAR/KV
MW/Hz
MVAR/Hz
(Furnish details of devices included in system for the suppression of harmonics i.e. the details of harmonic filter in use.)
11. Details of Captive Power Plants:

Annexure II

System Data to Be Provided to the Intending, Consumep With A Contracted Demand of 1 MW or More (Refer clause 6(3))

1. A topographical map indicating the area of the licensee's supply network in the State of Tamil Nadu.
2. Single line diagram of distribution system (OH lines / UG cables -length and conductor sizes) Primary and secondary substation capacity in KVA, capacitor bank sizes, fault level etc. to be indicated, (restricted area of concern for the prospective consumers)
3. Protective relaying and metering arrangements at substations

4. Details of the substation and its main equipments (Transmission/Sub Transmission) along with a single line diagram of the SS.

Furnish the details of Auto/Power Transformer

Capacity in MVA

Primary KV

Voltage rating

Secondary KV

Current rating

Primary Amps

Secondary Amps

Tap changing

off load / on load

Range

..% to +...%

Percentage impedance

....percent

Vector group

....

Impulse level (BIL)

.....KVP

Fault level of the system

..... MVA

Earthing system

solidly earthed or not

Power frequency voltage

..KV for one minute withstand

Circuit breakers

Type: Vacuum/SF6/Oil (OMCB,OCB)

Current rating

Voltage rating

Rupturing capacity in (KA)

Symmetrical Asymmetrical

Impulse withstand level KVP

Operating mechanism

Surge arrester

(Gapless) - MCOV

Surge current rating

(Gapped) - rated voltage

Surge current rating

Provision of spiked Mats for the Power/ Auto

Transformer

Ground wire for the station

Line entrance Arrester

Earth mat

Current Transformer

Type: Rated voltage

Current ratio

Potential Transformer

Type: Rated voltage

Burden

Capacitor Bank

MVAR/Bank

Voltage rating ...KV

Current rating ...Amp

Fire fighting equipment

Type - Nos

(Details)

Annexure III

Formats

FORM 1

Application Form for L.T. Service Connection
(except agriculture and hut)

FORM 2

Application Form for Agriculture Service
Connection

FORM 3

Application Form for Hut Service Connection

FORM 4

Application Form for H.T. Service Connections
(including additional demand)

FORM 5

Owner Consent Letter for getting New Supply

FORM 6

Indemnity Bond from the Occupier when there is
no Consent letter from owner

FORM 7

L.T. Agreement for Industrial / Agricultural
Services

FORM 8

H.T. Agreement Form

Form I

Application Form For L.T. Service Connection (Except Agriculture And Hut) Form Of Requisition For Supply Of Low
Tension Energy (Single Phase / Three Phase)
(Refer clause 27(3))

To

The Designated Engineer
(Address of the Licensee)

Sir,

1. I hereby require you to supply electrical energy to the premises hereinafter described.

(Note this undertaking does not preclude a separate written contract being entered into, if so desired by the Licensee or the consumer.)

2. I agree to pay for said energy, service connection and other dues including the deposit of such security, meter rent, as may be demanded in accordance with the scale of rates prescribed under Tamil Nadu Electricity Distribution Code, Supply Code, notifications and orders issued in this regard by Tamil Nadu Electricity Regulatory Commission.

3. I wish to be charged under Tariff..... under schedule of the TNERC tariff order dated.

4. I agree to take supply for.....years and utilize the energy in the premises described hereunder or outside the premises for my bonafide use.

5. In case I sell or otherwise dispose of the property / vacate the premises while the supply is continued, I agree to give one Calendar month notice in writing and pay all the arrears to the Licensee. Failing such notice, I hold myself responsible for energy consumed in the premises till such notice is given to the Licensee.

6. Description of the premises

Door No. and / or name of the house or premises

Street

Town / village and Taluk

Owned by (Name in Block letters)

Tenanted by (Name in block letters)

Applicant's correspondence address

7. The following are my requirements:

(A)

Lighting

Number of point's

Wattage of point's

Total wattage

(i) Lights

-

-

-

(ii) Fans

-

-

-

(iii) Convenient wall plugs

-

-

-

(B)

Domestic electrical apparatus:

(i) Cookers

(ii) Water heaters

(iii) Refrigerator

(iv) Air Conditioners

(v) Other purpose

(vi) Convenience wall plugs

(C)

Power Loads

(i) Domestic

(ii) Industrial

(iii) Welding

(iv) Other purposes

(v) Convenient Wall Plugs

Demand applied for in KW

The wiring has been completed on:

Place:

Signature of the Consumer

Date:

Note: The application shall be accompanied with the following documents:

(i)

Proof of ownership (sale deed or property / water / sewerage tax receipt)

(ii)

Consent letter from owner wherever applicable

For Licensee's Use Only

Application registered as No.....dated.....

Note: - 1. In case of transfer of the service, fresh application should be signed by the transferee (or a letter signed by

both the transferor and transferee, agreeing to the above conditions for transfer should be obtained).

2. Additions or omissions to the connected load to be notified to the Licensee before effecting the electricity connections.
Precaution to be Adopted by Consumers, Owners Electrical Contractors, Electrical Workmen, and other Suppliers of Energy

No electrical installation work, including additions, alterations, repairs and adjustments to existing installations except such replacement of lamps, fans, fuses, switches and other component parts of the installations as in no way alter its capacity or character shall be carried out upon the premises or on behalf of any consumer or owner for the purpose of the supply of energy to such consumer or owner, except by an authorized person specified by the Authority.

Form-2

Application Form For Agriculture Service Connection

(refer clause 27(2))

Application For Supply of Power To Agricultural Pump Sets

(Note: The application should be signed by the owner of the well, if there are partners, all must sign or consent to be given by co-owners)

To

The Designated Engineer,

(Address of the Licensee's Distribution Centre)

1. Name of owner of the well or partners
2. Full residential address of the owner or partners
3. S.F. No. in which the well is situated
4. Revenue village name, Taluk and District
5. Area and type of land to be irrigated by this well (Wet / Dry)
6. Horse Power of motor pump sets proposed to be installed.
7. Type of pump set (Centrifugal/ Submersible/ Air compressor)
8. Consent to abide by R&C of Licensee with regard to duration of supply

It is certified, I am the sole owner of the well / this application is signed by all partners

Place:Date:

Signature of the Applicant/Partners

Note: The document such as FMB map showing the location of the well, patta, chitta, adangal etc., shall be enclosed with the application.

Date of receipt in the Office of the Engineer,.....Certified that the open well / bore well and lands measuring acres and/cents in S.F.No Village of Taluk is Exclusively owned by Thiru.....s/o..... of.....Village

Jointly owned by

List of owners

(1)

.....s/o.....

(2)

.....s/o.....

(3)

.....s/o.....

Certified that Thiru.....s/o.....is small /big farmer(s)

Village Administrative Officer.

Form 3

Application For Hut Service

(Refer clause 27(3))

(Form of Requisition For Supply of Low Tension Energy 40 Watts To Huts In Panchayats)

To

The Engineer of the Licensee

Sir,

1. I hereby request you to supply electrical energy to my hut described below:

2. I agree to pay for energy, service connection meter rent and other charges including security deposit as demanded in accordance with the regulations prescribed by Tamil Nadu Electricity Regulatory Commission.

3. I wish to be charged under Tariff under schedule of the TNERC tariff order dated.

4. I agree to receive supply only for 40 W lamp and utilize the energy for my hut described hereunder and I agree that the authorities may disconnect the service connection in case I utilise the energy above 40 W.

5. In case I sell or otherwise dispose of the hut, I agree to give one Calendar month notice in writing and pay all the arrears to the Licensee.

6. I will make arrangements to make the single point wiring for lighting in my hut in accordance with the Code provisions and the safety rules prescribed by the Authority . I request the Licensee to provide single point wiring for lighting in my hut and the necessary payment will be made by me.

7. Self Declaration

The service connection applied for the hut is owned by me and

(a)

it is built in my patta land (Land Tax Receipt is enclosed)

(b)

it is built in the private land and No Objection Certificate obtained from the landowner is enclosed.

(c)

it is built in the poromboke land and No Objection Certificate obtained from the Officer (not below the rank of Deputy Tahsildar) is enclosed.

(d)

[It is built in the poromboke land and I furnish the following undertaking, -

[Inserted by Commission's Notification No. TNERC/DC/8-3 dated 31/05/2006 (w.e.f.21.6.2006).]

(1)

I am aware that I am liable to be evicted and for supply disconnection at any time if the lands are required by the Government and / or any dispute arises at a later date and that electricity supply given in this regard will not confer any claim on ownership of the land.

(2)

I am aware that the above undertaking shall not confer permanent and full right to the ownership of the land. (Delete clause not applicable)]

8. Description of the premises

(a)

Name of the applicant

(b)

Father's Name

(c)

Adi Dravidar / Other Castes

(d)

Survey No. / identification of hut

(e)

Area of hut

(f)

Whether the hut constructed with clay soil / thatched roof

(g)

Village and Taluk

(h)

Tenanted by (Name in block letters)

(i)

Applicant's correspondence address

Signature of the Consumer/left thumb impression

Form 4

Application For H.T. Service Connections

(Including addl. Demand).

Form of Application of New Supply or Additions To Connected Load and Have Maximum Demand Exceeding 63 KVA.

(Refer clause 27(3))

1. Name of Electricity supply Licensee and registered address:

2. Name of consumer and registered address

3. Address of consumer's premises at which supply is required

4. Nature of service

5. Voltage rating at which H.T. supply is required.

6. Data on consumers load

Notified connected load in H.P.

Description

As on date

Subsequent additional sanction

Estimated requirement now applied

Total

Brief details of industry to be served

No. of shifts

Probable date of load maturing

Remark if any regarding essentiality of supply

Signature of Consumer Name (in capital letter) Date: Office Seal.

[Note: The application shall be accompanied by the following documents: - [[Substituted by Commission's Notification No. TNERC/DC/8-5 dated 20-07-2006 (w.e.f. 16.8.2006) ivhich before substitution it was as under:

'Note:

(1)

The application shall be accompanied by the following documents

- Proof of oumership of the premises (or) Registered lease deed
- Partnership deed in case the applicant is a partnership firm
- Memorandum / Articles of Association in case of companies registered under Companies Act
- Letter /Resolution authorizing the signatory
- Site Plan ']]

(1)

(a)

When the applicant is the owner of the premises:

Certified copy of the sale deed for the premises executed in his favour (or)

Property Tax receipt for the premises in the name of the applicant, (b) When the applicant is not the owner of the premises:

Consent letter from the owner of the premises (or)

Proof of legal occupation (including lease deed) along with the following:

(a)

Indemnity Bond in Form 6

(b)

Letter of acceptance to pay security deposit at twice the normal rate.

(2)

Partnership deed in case the applicant is a partnership firm or Memorandum / Articles of Association in case of companies registered under Companies Act.

(3)

Letter / Resolution authorizing the signatory

(4)

Site Plan]

7. Data to be furnished by Licensee

Estimated increase in M.D. of theundertaking if

any, the application is recommended

Capacity of existing services if any

Nature of supply DC/AC voltage or low voltage

etc.

Brief list of materials required i.e. cable

transformer switch gear etc.

Approximate cost of giving service

Any other remarks affecting the supply

undertaking with particular ref. to plant site location of

consumer installation

Materials in stock

Materials to be ordered

1

2

3

4

5

5

8. Information regarding priority whether there is any prior H.T. applications in the connected area awaiting supply of power

Note: For the purpose of priority, the area served by the sub-station feeder will be taken into account.

Signature of Licensee's Engineer

Form 5

Owner Consent Letter For Getting New Supply.

(Refer clause 27(4))

To

The Designated Engineer

(Address of the Licensee)

Owner's Consent Letter

I.....have.....being the legal owner.....of the premises No..... hereby agree as follows-

I consent to the installation by you at the above mentioned premises tenanted by Thiru / Thirumathy.....of electric service cables, meters, wiring, fittings and other equipments for the supply of electricity (hereinafter called "The Installation") under the terms of an agreement between you and the tenant of the above said premises.

In the event of the above said tenant vacating the aforesaid premises, I shall give you due notice fifteen days advance to enable you to arrange for the termination of your contract with the aforesaid tenant failing which I shall be responsible for any loss that may accrue on that account.

Signed by the said.....the presence of

Witness Name.....

Address.....

Form 6

(To be obtained in a stamped paper).

(Refer clause 27(4))

Indemnity Bond from the occupier when there is no consent letter from owner.

Indemnity Bond to be furnished by an intending consumer who is not the owner of the premises and applies without the consent of the owner.

Deed of Indemnity

This Deed of Indemnity Executed on This, TheDay of Two Thousand by Thiru/Tmt
S/o. D/o W/o..... residing at having office / workshop at hereinafter called the indemnifier (which terms shall mean and include executors, administrators, heirs, successors and assigns) to and in

favour of the (name of Licensee and address), a body corporate, hereinafter called the Licensee (which terms shall mean and include its successors in office and assigns).

Whereas the consumer has taken on lease the premises in Door No.....for the purpose of.....from Thiru/Tmty.....S/o D/oW/o.....residing at.....who is the owner of the above said premises.

And Whereas the consumer has approached the said owner of the premises to give his /her consent in writing to avail of a service connection in his/her name for the purpose of his / her business.

And Whereas the said owner is not available/has refused to give his/her consent in writing for the purpose.

And Whereas the indemnifier has requested the Licensee to give a service connection in his/her name subject to execution of an indemnity bond by him/her indemnifying the Licensee against any damage or loss caused to the Licensee in respect of the service connection in his/her name.

And Whereas in consideration of the acceptance of the above for a service connection in his/her name, the indemnifier hereby agrees to indemnify the Licensee against all proceedings, claims, demands, costs, damages, expenses which the Licensee may incur by reason of a fresh service connection given to the indemnifier without the consent of the owner of the premises. The indemnifier further undertakes to make good any sum that may be found to be and become payable to the Licensee with regard to all liabilities and claims personally as well as by means of both movable and immovable properties. The indemnifier agrees that the enhanced Security Deposit paid by him shall be adjusted against the arrears of current consumption charges but also against any claim that may arise in the event of termination of the agreement prior to the expiry of the contracted period. The indemnifier further undertakes that the Licensee shall be at liberty to disconnect the service connection given to him/her and also for loading the dues remaining unpaid by him/her to other service connection (s) that may stand in his/her name.

Now the Condition of the above written bond is such that if the indemnifier shall duly and faithfully observe and perform the above said conditions, then the above written bond shall be void, otherwise the same shall remain in full force.

In Witness Where of Thiru/ Tmt.....the indemnifier has signed this deed on the day month and year herein before first mentioned.

Signed and Delivered By

In the presence of

Witness (Name and Address)-

1.

2.

Form 7

L.T. Agreement For Industrial / Agricultural Services

(Refer clause 33(1)

(Licensee Name)

L.T. Agreement Form

(i)

Scheme No.....

Name of Extension

(ii)

Sanction No.....

Name of consumer Security Deposit

Permanent Receipt No.....dated.....

Stamp fee of Rs.....Collected in Receipt

No.....Date.....

S.C.No,.....

Distribution.....

Date of Service Connection (Date of Supply).....

Date of commencement of agreement.....

Form of Agreement to Be Taken From Consumers for Supply of Low Tension Electrical Energy and Miscellaneous Charges Connected Therewith

Agreement made this.....day.....ofTwo thousand and.....between the (Name of the Licensee) a body corporate for distribution of electricity in the area (Hereinafter referred to as the Licensee which

expression shall include its representatives) of the one part, and.....(Hereinafter referred to as "the Consumer" which expression shall include his/her heirs, executors, administrators and Legal Representatives and permitted assigns) of the other part, whereby it is agreed as follows -

1. Conditions of Supply. - The Licensee shall furnish to the Consumer and the Consumer shall accept at the premises mentioned in the Schedule hereto on and from the date on which the said premises shall be connected with the Licensee's distributing main a constant supply of electrical energy for the purpose and up to the maximum specified and under the conditions laid down in the Distribution and Supply Code. But the Licensee or its employees, servants or agents will not be responsible for any interruption or diminution of the supply due to lockouts, strikes of the employees of the Licensee, breakdown of machinery or plant, flood or other force majeure or any other cause beyond the control of the Licensee.

The conditions if any imposed by the licensee based on the directions of the Commission shall bind the consumer.

The Consumers shall commence to take supply within a month from the date of receipt of intimation from the officers of the Licensee that supply is available unless the consumer, in the opinion of the Engineer, is unable to do so for causes reasonably beyond control. Where the supply is not availed of within one month from the date of intimation as aforementioned, the sanction for the load shall lapse and this agreement also shall stand cancelled.

[***] [[Words 'The energy shall be utilized within the premises mentioned in the schedule hereto or outside the premises for the bonafide use of the Consumer. In case of difference of opinion as to whether any utilisation of energy outside the premises is for the bonafide use of the consumer, the matter shall be referred to the Engineer, whose decision shall be final.' omitted by Notification No. TNERC/DC/8-19, dated 01-07-2014.]]

The consumer shall permit the Licensee free of cost to erect the posts, transmission line, structures and other apparatus necessary for the supply of electrical energy under this agreement over the land belonging to the Consumer and the Consumer shall have no claim whatsoever on account of any damage to his/her, property by reason of such erection of, or any other work on the posts transmission lines, structures and other apparatus.

The Consumer agrees to take supply under any conditions of restrictions of load and time that may be fixed by the Licensee from time to time and to pay the minimum under this agreement in full notwithstanding such restrictions.

Supply is liable to be restricted, staggered or cut off altogether, as the case may be, if the power position or any other emergency warrants such a course of action.

Tire Licensee reserves the right to periodical shut down as and when required for purposes of routine maintenance after giving reasonable notice to the Consumer.

2. Payment For Service Lines Etc., - The consumer shall pay to the Licensee on demand the cost of any service lines in respect of which requisition has been made.

3. Meters. - The supply shall be measured and registered by a meter or meters in or upon the said premises to be provided, fixed and kept in proper order by the Licensee and such meter or meters shall remain the property of the Licensee. The consumer shall pay to the Licensee for each meter on hire the monthly rent as specified by the Commission from time to time. [In the event of any meter ceasing to register or being found defective, the consumption during the period of such cessation or the existence of such defect shall be based on the average consumption of the preceding or succeeding four months, as the case may be as stipulated in the supply code.] [[Substituted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008) before substitution it reads as under:

'In the event of any meter ceasing to register or being found defective, the readings during the pei iod of such cessation or the power consumed during the period the meter was defective shall be based on the average consumption of the previous four months.']] No meter rent shall be collected from the consumer who opts for providing his/her own meter.

4. Reading of Meters. - Readings of the meter or meters will be taken by the employees of the Licensee once in each month or at such other intervals or times, as it shall think expedient and such meter readers shall have access to the Consumer's premises at all reasonable times, for the purpose of taking such readings.

[The reading of each meter shall be entered by such reader in the Meter Card supplied to the consumer, which shall be open to the inspection of the Consumer] [[Substituted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008) before substitution it was as under:

'The reading of each meter shall be entered by such reader in the consumer meter card to be attached to such meter, which shall be open to the inspection of the Consumer.']]. Payment for energy supplied shall be made by the consumer according to the reading referred to above of each meter and the charges recorded in the card by the Licensee.

The Licensee shall be entitled to discontinue supply if the consumer fails to give the employees of the Licensee

reasonable facilities to enter the premises for the inspection, testing or removal of its supply lines meters, fitting works and apparatus and the Licensee has given in writing 24 hours notice of its intention so to discontinue.

5. Faults In Meters. - If the consumer shall at any time consider that any such meter is not in proper order and does not correctly register the quantity of the supply, the Engineer will on receipt of a representation in writing in that behalf from the consumer take necessary steps to have the same tested. If upon such test, it be found that the meter registers the supply within the limits of error as per applicable rules etc., the Consumer shall pay to the Licensee on demand all costs of and incidental to such test. If, however, upon such test it shall be found that the meter registers the supply in-excess of the limits of error, all costs of and incidental to such test shall be borne by the Licensee. If, however, the mean error be found to be more than that specified above, the Engineer will deduct from or add to the account for the preceding period of four months an amount equivalent to the error.

[6. Tariff and Payment. - For all Electrical energy so supplied, the Consumer shall pay to the Licensee at the tariff/minimum rates that may be decided by the Commission from time to time] [[Substituted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008) before substitution stood as under:

6.

Tariff And Payment:

'For all Electrical energy so supplied, the Consumer shall pay to the Licensee at the rates given below and in accordance with the terms contained, in this agreement, provided that the minimum rates at least specified herein shall be paid irrespective of whether energy to that extent has been consumed or not.'

NOTE: The above tariff and the minimum are subject to any revision and or levy of surcharge that may be decided by the Commission from time to time.]]

7. Consequences of Non-Payment. - If the amount of such bill remains unpaid on the expiry of the due date the Licensee may give the consumers [Fifteen days Notice]

[Substituted for the expression 'Fifteen Notice' by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

of his/her intention to discontinue the supply of electrical energy and at the expiry of such period if payment has not been received, may forthwith disconnect the supply and keep the same disconnected until payment of all moneys due under this agreement and the charges for the work of disconnection and reconnection has been made.

If the consumer fails to pay the amount of such bill due under this agreement within the notice period for payment as per the supply code, he shall in addition and without prejudice to the other rights and remedies of the Licensee, pay a surcharge of one and half percent per month.

Such disconnection of the supply of electrical energy shall not relieve the Consumer of his/her liability to pay the minimum charge and the guaranteed revenue provided for herein, nor shall it affect any right, claim demand or power which may have accrued to the Licensee hereunder.

8. Security Deposit. - [***]

[The consumer The word 'shall' omitted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

on being there unto required in writing by the [Licensee shall]

[Substituted for the expression 'Licensee' by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

deposit with the designated Officer of the Licensee the sum of Rs.....(Rupees as security for the purpose next herein after mentioned and shall on a similar requisition from the Designated Officer from time to time renew or replenish such security in the event of the same becoming exhausted or insufficient. Interest shall be paid on deposits at the [rates]

[Substituted for the expression 'rate of' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

notified by the Commission from time to time. Full calendar months shall be taken for the purpose of calculating interest, which shall be calculated to the nearest rupee. The interest accruing to the credit, of the Consumer shall be adjusted as provided for in the supply code. The designated Officer, shall be at liberty at any time and from time to time to appropriate and [adjust]

[Substituted for the expression 'apply' as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

the Security so deposited as aforesaid in or towards payment or satisfaction of all or any money which shall become due

or owing by the Consumer to the Licensee in respect of the supply of energy or otherwise under this agreement but the provisions contained in this clause shall not prejudice any other remedy to which the Licensee may be entitled for the recovery of such money.

9. Termination of Agreement. - The agreement can be terminated by the consumer at any time by giving one-month notice in writing to the Licensee expressing his intension to do so. In such case the consumer shall pay to the licensee, from the date commencement of supply till the agreement is terminated, [***]

[Words 'security deposit' omitted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

, minimum monthly charges, fixed charges, if any and other charges. The Licensee can terminate agreement at any time by giving one month notice if the consumer has violated the terms of the agreement or the terms and conditions of the Distribution Code or provision of any law relating to the agreement including the applicable Acts and Rules and other orders [issued by the Commission from time to time]

[Inserted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

. The Licensee shall inform the consumers the grounds for such termination:

Provided always the consumer may at any time with the previous consent of the Engineer transfer his rights under this agreement to any other person approved by the Engineer and upon acceptance by such transferee of a valid assignment of these presents, this agreement shall become binding on the transferee and licensee as from date of acceptance and take effect in all respect as if the transferee had originally been [party]

[Substituted for the expression 'partly' as per Commission's Notification No. TNERC/D/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

hereto, in place of the [consumer]

[Substituted for the expression 'customer' by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

, who shall thenceforth be discharged from any further liabilities under or in respect hereof, without prejudice, however, to any claim by the licensee against the consumer in respect of any prior breach of this agreement by the consumer.

10. Sale or Transfer of Premises. - If the consumer shall, at any time during the continuance of this agreement intend to sell or otherwise dispose of the properties to vacate the premises to which electric supply is given or contracted for, he shall give [prior]

[The word 'previous' omitted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

intimation to Engineer of his intention to do so and clear off all the dues to the Licensee up to that date. Upon receipt of such intimation and with effect from the date specified in such intimation the agreement in so far as the consumer is concerned shall cease to operate but without prejudice to any claim or right which may have accrued to the parties there under.

If the consumer fails to give intimation as mentioned above he shall continue to be liable to pay the charges for consumption and other charges as under this agreement even beyond the date on which the premises is sold / vacated.

11. Applicability of Acts and Regulations. - This agreement shall be read and construed as subject in all respects to the provision of the applicable Act and Regulations as noted in Distribution Code and Supply Code and of any modification or re-enactment thereof for the time being in force and the regulations for the time being in force there under so far as the same respectively may be applicable and subject to the conditions of supply approved from time to time [by the Commission]

[Inserted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

12. Savings As To Clerical Error - (a) In the event of any clerical errors or mistakes in the amount levied, demanded or charged by the Licensee then in the case of undercharging, the Licensee shall have a right to demand an additional amount and in the case of over charging the consumer shall have the right to get refund of the excess amount provided at that time such claims were not barred by limitation under the Act.

[***]

[The word 'provision' omitted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008)]

(b)

The parties hereby further agree that the amount claimed in the bill shall be payable within the time allowed, irrespective of any decision to be taken regarding any disputes about its correctness or otherwise of the amount levied demanded

charged by the Licensee. The Licensee shall have a right to proceed in accordance with the Act, on the basis of the amount claimed in the bills, till it is proved or established that the amount claimed was in excess of what was actually due. The consumer shall not on the plea of incorrectness of the bills withhold any portion of the bills.

13. General. - The other conditions of supply in this agreement are also subject to any revision that may be decided by the Licensee as per the directions of the Commission from time to time.

Description of the Premises at which Supply is to be given

[I. (a) District

[Substituted by Commission's Notification No. TNERC/D/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

(b)

Taluk.

(c)

Town/Village

(d)

Door No./Survey No./ Street

(e)

Street name / area

(2)

Supply Details

(a)

Purpose of Supply

(b)

Single or Three phase.

(c)

Voltage

(d)

Tariff

(3)

Connected Load details KVA / KW/HP Maximum connected load required by the consumer.]

In witness thereof.....the Engineer acting for and on behalf of the Distribution Licensee and..... (consumer) have hereunto set their hands and seals the day, month and year first above written.

[Engineer]

[The word 'Engineer' shown in the left hand corner at the bottom end of the agreement shall be shown in the right hand corner as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f 27.2.2008).]

Witness, [with address]

[Inserted by Commission's Notification No. TNERC/D/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

1.

2.

[***]

[The words 'Postal Address' omitted as per Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008(w.e.f. 27.2.2008)]

Signature of the Consumer

Form 8

H.T. Agreement Form

(Refer clause 33(1))

This Agreement made this day of between. (Name of the Licensee) a body corporate for distribution of electricity in the area, called Licensee (which expression shall include its legal representatives and assigns) of the one part

And hereinafter called the 'consumer' (which expression shall include its successors, legal representatives and assigns) of the other part.

Whereas the consumer has requested the Licensee to supply electrical energy for a maximum demand of KVA at H.T. / E.H.T. for the purpose of light and power and the Licensee has agreed to afford such supply to the consumer in

Ref. No.....on the terms and conditions of the Distribution Code, Supply Code and Grid Code wherever applicable and those hereinafter contained and whereas the consumer availed the supply on.....

Whereas an additional load of.....

KVA was sanctioned to the consumer in Ref. No.

totaling in all to a Maximum demand of.....KVA.

Whereas the consumer has on.....given an under-taking to execute an agreement with the Licensee. Now it is hereby declared and agreed as follows:

1. Load Maximum Demand. - Subject to the provisions hereinafter contained, the Licensee shall supply and the consumer shall take from the Licensee electrical energy for a maximum demand not exceeding.....KVA which shall be its contracted demand for its exclusive use for the purpose above mentioned at the premises of its Factory/ Mills, at.....

The connected load shall be.....KVA / KW / HP.....The consumer shall not effect any change in the maximum demand or connected load.

2. Date of coming into force of the agreement - The Consumer shall begin to take electrical energy from the Licensee subject to the conditions of this agreement within three months from the date on which intimation is sent in writing to the consumer by the Licensee that supply of electrical energy is available. The provisions of this agreement shall be deemed to come into force from the date of commencement of supply of energy or the date of issue of first three month's notice of availability of supply whichever is earlier. [If the consumer fails to avail the supply within 3 months, a further three months extension will be granted by the Licensee, after collecting the monthly minimum for the extended period in advance.

[Inserted by Commission's Notification No.TNERC/DC/8-8 dated 8.2.2008 (w.e.f.27.2.2008).]

If the intending consumer fails to avail the supply, within the notice period or within the extended period granted thereof, the application will be treated as cancelled and the agreement will be terminated forfeiting all the amount paid by the consumer except meter security deposit as per the provisions of the Distribution Code]

3. Resale of Energy. - The consumer shall not sell the electrical energy obtained under this agreement without the sanction in writing of the Licensee.

4. To comply with requirements of Act and Terms and Conditions of Distribution Code and Supply Code. - The consumer hereby undertakes to comply with all the requirements of the applicable Acts, Regulations etc, and Grid code, Distribution code and Supply Code and of any amendments, modifications or reenactment thereof or of any other enactment to be passed in relation to supply made under this agreement from time to time and the rules, regulations or orders etc. made thereunder from time to time, provisions of the Tariffs, Scale of Miscellaneous and other charges and the terms and conditions of supply prescribed from time to time, and the consumer hereby agrees not to dispute their applicability to this agreement.

5. Design and Maintenance of equipment of consumer. - All transformers switchgear and other electrical equipment belonging to the consumer and directly connected to the feeders or lines of the Licensee shall be of suitable Design and be maintained to the reasonable satisfaction of the Engineer/ The ratings of the fuses and setting of the relays on the consumer's control gear as well as the rupturing capacities of the consumer's circuit breakers, if any, shall be subject to the approval of the said Engineer.

6. Obligation of consumer to pay all charges levied by Licensee. - From the date this agreement comes into force the consumer shall be bound by and shall pay the Licensee, maximum demand charges, energy charges, surcharges, meter rents and other charges, if any, in accordance with the tariffs applicable and the terms and conditions of supply notified from time to time for the appropriate class of consumers to [which such consumer belongs]

[Substituted for 'which it belongs' by Commission's Notification No. TNERC/B dated 8.2.2008 (w.e.f.27.2.2008).]

7. Licensee's right to vary terms of agreement.- The consumer agrees that the Licensee shall have the right to vary, from time to time, tariffs, general and miscellaneous charges and the terms and conditions of supply under the directions / regulations or by special or general proceedings of Tamil Nadu Electricity Regulatory Commission. The consumer, in particular, agrees that the Licensee shall have the right to enhance the rates etc. chargeable for supply of electricity according to exigencies again with the approval of Tamil Nadu Electricity Regulatory Commission. It is also open to Licensee to restrict or impose power cuts totally or partially at any time as it deems fit.

8. Minimum Monthly Charges. - The consumer agrees to pay minimum charges every month as prescribed in the tariff

and supply code even if no electricity is consumed for any reasons whatsoever, and also if the charges for electricity actually consumed are less than the minimum charges. The minimum shall be payable even if electricity is not consumed because of disconnection of supply by the Licensee due to non-payment of electricity charges, pilferage or other mal-practices or for any other valid reason.

9. Surcharge. - The tariffs charged by the Licensee are subject to any surcharge that may be levied by the Licensee from time to time as per approval of the Commission.

10. Period of Agreement. - This agreement shall remain in force till it is terminated by either party as provided in Distribution code and Supply code

In Witness Where of Thiru Engineer,..... acting for and on behalf of the Licensee and Thiru.....for and on behalf of the consumer have hereunto set their signatures, and the common seal of M/s.....has hereunto been affixed.

[Signed in the presence of Engineer

1.

2.

The common seal of

M/s.....

Partner Managing Director

Witnesses with Address:

1.

2.

]

Abbreviations

1.

AC

- Alternating Current

2.

CERC

- Central Electricity Regulatory Commission

3.

CMDA

- Chennai Metropolitan Development Authority

4.

DC

- Direct Current

5.

FMB

- Field Measurement Book

6.

HP

- Horse Power

7.

HV

- High Voltage

8.

HZ

- Hertz

9

KVA

- Kilo Volts Ampere

10.

KVP

- Kilo Volt Peak

11.

KW

- Kilo Watt

12.

LV

- Low Voltage

13.

MCOV

- Maximum Continuous Operating Voltage

14.

MV

- Medium Voltage

15.

MVA

- Mega Volt Ampere

16.

MVAR

- Mega Volt Ampere Reactive

17.

MW

- Mega Watt

18.

OCB

- Oil Circuit Breaker

19.

OMCB

- Oil Minimum Circuit Breaker

20.

OH

- Overhead

21.

R & C

- Restriction and Control

22.

RCC

- Reinforced Cement Concrete

23.

R&D

- Research and Development

24.

SC

- Service Connection

25.

SLDC

- State Load Dispatch Centre

26.

SS

- Sub-station

27.

UG

- Underground

28.

UF

- Under Frequency

29

UPS

- Uninterrupted Power Supply

30.

VAR

- Volt Ampere Reactive

[Substituted by Commission's Notification No. TNERC/DC/8-8 dated 8.2.2008 (w.e.f. 27.2.2008).]

[[Substituted as per Commission's Notification No. TNERC/DC/8-3 dated, 31/05/2006 (w.e.f.21.6.2006). before omission it reads as under:

'Supply shall be given in poromboke land on production of necessary documents as per the directive from the Government from time to time.']]

Related AI tags, queries and research notes

Translation